



EXECUTIVE OFFICE OF THE PRESIDENT
OFFICE OF MANAGEMENT AND BUDGET
WASHINGTON, D.C. 20503

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M-21-15

MEMORANDUM FOR HEADS OF EXECUTIVE DEPARTMENTS AND AGENCIES

FROM:

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Executive Associate Director

A handwritten signature in black ink, appearing to read "Aviva Aron-Dine", is positioned to the right of the typed name.

SUBJECT: COVID-19 Safe Federal Workplace: Agency Model Safety Principles

This memo provides guidance to agencies following the release of the President's Executive Order (EO) on [Protecting the Federal Workforce and Requiring Mask-Wearing](#). This EO, which is part of the [National Strategy for the COVID-19 Response and Pandemic Preparedness](#), states that:

It is the policy of the Administration to halt the spread of coronavirus disease 2019 (COVID-19) by relying on the best available data and science-based public health measures. Such measures include wearing masks when around others, physical distancing, and other related precautions recommended by the Centers for Disease Control and Prevention (CDC). Put simply, masks and other public health measures reduce the spread of the disease, particularly when communities make widespread use of such measures, and thus save lives.

Pursuant to this EO, agencies should immediately require masks and distancing consistent with current CDC guidance in all Federal buildings.

To provide ongoing guidance to heads of agencies on the operation of the Federal Government, the safety of its employees, and the continuity of Government functions during the COVID-19 pandemic, the President has established a Safer Federal Workforce Task Force. The Task Force's guidance and recommendations to departments and agencies will be based on public health best practices as determined by the Centers for Disease Control and Prevention (CDC) and other public health experts and will be co-chaired by the Director of the Office of Personnel Management (OPM), the Administrator of General Services (GSA), and the COVID-19 Response Coordinator, with membership from several agencies.

As an initial step, to support the implementation of this Executive Order, the Safer Federal Workforce Task Force and OMB are providing agencies with model safety principles for executive departments and agencies as they build tailored COVID-19 workplace safety plans (see Appendix I). These model principles are intended to assist agencies in fulfilling the

requirement to: "immediately take action, as appropriate and consistent with applicable law, to require compliance with CDC guidelines with respect to wearing masks, maintaining physical distance, and other public health measures by: on-duty or on-site Federal employees; on-site Federal contractors; and all persons in Federal buildings or on Federal lands."

Specifically, agencies are required to review the attached model principles and develop tailored agency COVID-19 workplace safety plans. The 24 Chief Financial Officer Act agencies must submit their plans by Friday, January 29 to the following site: <https://go.max.gov/covid-19plans>. Other agencies do not need to submit their plans.

Following agency submissions, the Safer Federal Workforce Task Force and OMB will work with agencies to review and finalize plans. The principles outlined in the attached model should be used as a starting point for individual agency workforce safety plans, and agencies should adjust, as appropriate, for its mission requirements. Agencies with on-site contractor employees should make appropriate refinements to ensure the principles are applied to contractor employees in a manner that achieves workplace safety. This document is not meant to be comprehensive, and additional implementing guidance will follow as necessary and as conditions evolve, following guidance from the CDC and the Safer Workforce Task Force.

As implementation plans are implemented, agencies should continue to ensure that all employees, on-site contractors, and visitors to Federal workplaces are aware of the requirement to comply with CDC guidelines, including with respect to wearing masks and following appropriate distancing practices.

If agencies have additional questions on OMB MAX access or the development of the safety plan, please direct questions to the Safer Federal Workforce Task Force at SaferFederalWorkforce@gsa.gov.

Of paramount concern is the health and safety of all Federal employees and contractors and their families, and the Administration is committed to taking a safe, cautious, iterative, data-driven approach. Thank you for your important role in ensuring the health and safety of our Federal workforce and contractors, their families, and the public in our Federal workplaces.

Attachment

Appendix 1: COVID-19 Safe Federal Workplace: Agency Model Safety Principles

Purpose

The purpose of this document is to provide model safety principles for executive departments and agencies (hereafter, “agency” and collectively, “agencies”) as they build tailored COVID-19 workplace safety plans. In his Executive Order, “[Protecting the Federal Workforce and Requiring Mask-Wearing](#),” dated January 20, 2021, President Biden established a “Safer Federal Workforce Task Force” to oversee the development and implementation of agency COVID-19 workplace safety plans across the Federal Government.

This document is primarily focused on application of U.S. Centers for Disease Control and Prevention (CDC) guidelines to the Federal workplace—specifically related to masking and physical distancing. This document is not meant to be comprehensive, and additional implementing guidance will follow as necessary.

This document establishes a minimum level for workplace safety standards associated with masking and physical distancing across the Federal government. In developing their own COVID-19 workplace safety plans, agencies should build upon these principles. Agencies should consult with the Safer Federal Workforce Task Force to discuss special circumstances or higher-risk work environments.

Agencies should use this document as a starting point for revisions of their existing COVID-19 workplace safety plans and adjust existing plans as necessary. Agencies with on-site contractor employees should address how the protocols below are being applied to contractor employees to ensure Federal workplace safety in the context of COVID-19.

Agency Actions

Agencies should:

1. Immediately require correct and consistent use of masks and physical distancing consistent with current CDC guidance in all Federal buildings.¹
2. Review the safety principles below and adapt as necessary to meet the needs of the agency.
3. Designate a COVID-19 coordination team within the agency.

In addition, the 24 Chief Financial Officer (CFO) Act agencies must submit a COVID-19 workplace safety plan (revised or drafted consistent with the principles in this document) to the Safer Federal Workforce Task Force, via the submission instructions in the cover memo accompanying this document, no later than January 29, 2021. While formally submitted COVID-19 workplace safety plans are only required of CFO Act agencies, the principles below should be applied to all Federal agencies and workplaces, including small and independent agencies. Agency implementation policies and plans should be consistent with the following principles and elements.

¹ See section 7(a)(ii) of the Executive Order, “Protecting the Federal Workforce and Requiring Mask-Wearing,” dated January 20, 2021: “[...]“Federal buildings” means buildings, or office space within buildings, owned, rented, or leased by the executive branch of which a substantial portion of occupants are Federal employees or Federal contractors [...]”.

Overview of Model Principles

The Federal Government is committed to addressing essential work requirements consistent with best public health practices. The Administration's paramount concern is the health and safety of all federal employees, on-site contractors, and individuals interacting with the Federal workforce. As set forth in the January 20, 2021 Executive Order on "Protecting the Federal Workforce and Requiring Mask-Wearing," the policy of the Administration is "to halt the spread of coronavirus disease 2019 (COVID-19) by relying on the best available data and science-based public health measures," including taking a science-based and data-driven approach to safety in Federal workplaces.

The principles presented here are aligned to the [latest guidance](#) from the CDC and established public health best practices, based on evolving understanding of the pandemic. Principles will be reassessed over time, as conditions warrant.

Goal

The health and safety of the Federal workforce is the Administration's highest priority.

Health and Safety

Telework and Remote Work

Employees currently working remotely on a frequent or regular basis (e.g., if on an expanded remote work schedule, such as "maximum telework") will be given advance notice and guidance before returning to the physical workplace. The agency's human resources (HR) team will evaluate activities, on an on-going basis, that may require on-site work.

As a general principle, every effort will be made to maximize the use of remote work during widespread community transmission. Unless it is physically impossible or poses a threat to critical national security interests, generally speaking, occupancy in Federal workplaces should be no more than 25% of normal capacity during periods of significant or high community transmission, as discussed further in the occupancy section below. Levels of community transmission can be established by consulting CDC's [COVID Data Tracker County View](#).

COVID-19 Coordination Team

By January 26, 2021, each agency should establish a COVID-19 Coordination Team. This team should—at minimum—include a representative from: each component agency (if applicable); HR; occupational safety and health; executive leadership; counsel's office; and a public health expert. If such an expert does not exist at the agency, a delegate will be designated by the Safer Federal Workforce Task Force. The team is responsible for conducting assessments in order to establish, implement, and monitor compliance with: (a) safety protocols for physical space and masking; and (b) determinations of on-site and telework/remote working. The group should meet regularly to review compliance with agency COVID-19 workplace safety plans and protocols, consider potential revisions to agency COVID-19 workplace safety plans and protocols, and any other operational needs. For CFO Act agencies, this team should review draft COVID-19 workplace safety plans and protocols for the agency, make any necessary changes, and submit plans to the Safer Federal Workforce Task Force for review and comment. Where appropriate, the agency's COVID-19 Coordination Team may consult with the General Services Administration (GSA), the Office of Personnel Management (OPM), and the Office of Management and Budget (OMB). For privately owned and Federally leased space, the team should coordinate with GSA and building security and safety committees.

Face Masks

Federal employees and on-site contractors must [wear a mask](#) that [covers the nose and mouth](#), and is in accordance with any current CDC and OSHA guidance. CDC [recommends](#) the following: Non-medical disposable masks, masks that fit properly (snugly around the nose and chin with no large gaps around the sides of the face), masks made with breathable fabric (such as cotton), masks made with tightly woven fabric (i.e., fabrics that do not let light pass through when held up to a light source), masks with two or three layers, and masks with inner filter pockets. Agencies should not allow novelty/non-protective masks, masks with ventilation valves, or face shields as a substitute for masks.

To the extent funds are available, agencies may purchase masks to provide to staff and visitors, but are not required to provide masks. Agencies may determine that agency-supplied non-medical disposable masks should be worn rather than employee-supplied masks. When making this determination, agencies should consult with the Safer Federal Workforce Task Force for advice. Wearing masks may be difficult for some people with sensory, cognitive, or behavioral issues. If they are unable to wear a mask properly or cannot tolerate a mask, they should not wear one, and [adaptations and alternatives](#) should be considered. Accommodations will be made for individuals with required documentation, and should be in accordance with existing Equal Opportunity Employment Commission (EEOC) guidance.

Appropriate masks should be worn consistently. Masks should be worn in any common areas or shared workspaces (including open floorplan office space, cubicle embankments, and conference rooms). Masks should also be worn in outdoor shared spaces when physical distancing cannot be maintained. Agencies may provide for exceptions consistent with CDC guidelines, for example when an individual is alone in an office with floor to ceiling walls and a closed door or for a limited time when eating or drinking and maintaining distancing in accordance with CDC guidelines.

Individuals may be asked to lower their masks briefly for identification purposes in compliance with safety and security requirements.

If agencies need assistance in procuring masks, they should work with GSA and the Safer Federal Workforce Task Force, subject to the availability of appropriations.

Masks do not provide the same level of protection as respirators and should not replace personal protective equipment required or recommended at the workplace.

Testing

As required in the Executive Order, the CDC is developing and submitting a testing plan for the Federal workforce to the COVID-19 Response Coordinator. Once that plan is available, the Safer Federal Workforce Task Force will follow up with agencies to provide additional guidance.

Contact Tracing

The agency's COVID-19 Coordination Team will collaborate with and support the contact tracing programs of local health departments to help identify, track, and manage contacts of COVID-19 cases. The agency's HR Team will engage in coordination with facilities staff to implement infection control and workplace safety efforts once informed of a case of COVID-19 (either due to specific symptoms or positive test).

The agency's HR team, Assistant Secretary for Management team, or both, have the responsibility to make disclosures to local public health officials as required or necessary to provide for the public health and safety of Federal employees and contractors, in accordance with local public health mandates. If

COVID-19 cases occur within a specific building or work setting, it will be the responsibility of that agency's COVID-19 Coordination Team (or a field office/agency component designee) to determine—in consultation with local public health officials—appropriate next steps. Agencies should be transparent in communicating related information to the workforce, as relevant and appropriate, consistent with local and Federal privacy and confidentiality regulations and laws.

Travel

Federal employees should adhere strictly to CDC [guidelines](#) before, during, and after travel, regardless of whether the travel is personal or for official business. At this time, these include the following precautions: carefully assessing travel risk prior to travel, wearing a mask during all portions of a trip, maintaining physical distance from non-household members, maintaining good hand hygiene by regularly washing hands with soap and water, or using alcohol-based hand sanitizer if soap and water are not available, and getting tested and staying home after higher-risk travel before returning to the workplace. The CDC has extensive guidelines for both domestic and international travel, and federal workers should consult these resources carefully before deciding to travel. Additional resources for official travel can be found on the [GSA COVID-19 Information Site](#).

Employees should be aware that they may be required to stay at home for a period of time after official or personal travel (typically allowing the employee to request personal leave when it results from personal travel, if an employee is otherwise expected to be present onsite) before they are allowed to return to the workplace, as well as following any testing guidance once issued. Private transportation for official travel is preferred to use of public or other communal transportation, in combination with other safety/security guidance.

Given currently high levels of transmission in the United States, official domestic travel should be limited to only mission critical trips. International travel should also be avoided if at all possible, unless it is mission critical (e.g., military deployments, COVID-19 response deployments/activities, diplomats traveling, high-level international negotiations that cannot occur remotely). Heads of agencies should issue more specific guidance to account for the particulars of their agency's mission, limiting official travel as much as possible.

Symptom Monitoring

If Federal employees, on-site contractors, or visitors are not feeling well, they should not enter the Federal workplace.

Federal employees and contractors working on site will be asked to regularly complete symptom screening (e.g., a symptom questionnaire, an exposure history questionnaire, a temperature check), on a daily basis or upon entry to the workplace. The agency will use this information to assess the individual's risk level and to determine whether they should be allowed entry to the workplace. Visitors will also be asked to complete symptom screening before entering a Federal facility. In developing these tools, agencies may adapt the one used by [CDC](#).

Agencies should also consider using mobile/web application tools to help facilitate this process.

A symptom list requiring immediate medical attention can be accessed on the CDC website [here](#).

Any individual who develops [any symptoms consistent with COVID-19](#) during the workday must immediately isolate, notify their supervisor, and promptly leave the workplace. The Agency should have processes in place to provide advice and support to supervisors on any related reporting or HR requirements.

Quarantine and Isolation

Any individual with a suspected or confirmed COVID-19 will be advised to isolate, [pursuant to CDC guidelines](#), and in compliance with local laws/regulations. Personnel who have had a close contact in the past seven days with someone who has tested positive for COVID-19 should follow CDC and local guidance for quarantine.

Confidentiality

All medical information collected from personnel, including test results and any other information obtained as a result of testing and symptom monitoring, will be treated confidentially in accordance with applicable law, and accessible only by those with a need to know in order to protect the health and safety of personnel. Agencies should identify a point of contact for all questions relating to personal medical data.

Workplace Operations

Occupancy

No Federal workplace should operate above 25% of normal occupancy standards at any given time during periods of high community prevalence or transmission. Exceptions to this policy must be cleared by the head of the agency as advised by the agency's COVID-19 Coordination Team and in consultation with the Safer Federal Workforce Task Force. The agency's COVID-19 Coordination Team should develop a staffing plan that outlines which employees will work on-site full-time, on-site occasionally, or fully remote.

Physical Distancing

To the extent practicable, individuals will be asked to maintain distance of at least six feet from others at all times, consistent with CDC guidelines, including in offices, conference rooms, and all other communal and work spaces. Distance and testing are not substitutes for wearing masks. Individuals should maintain distance AND properly wear masks. One-way walkways, reconfiguration of workspaces or office assignments, and other mitigation strategies may be implemented to minimize interactions.

Environmental Cleaning

Enhanced cleaning in common use/high touch/high density spaces, such as lobbies, restrooms, elevators, and stairwells will be provided. Office space that is in regular use will be cleaned regularly, and in accordance with CDC guidelines. Wipes, gloves, and other EPA-approved disinfectants will be made available for individuals to wipe down their workstation and related personal property. Physical barriers such as plexiglass shields may be installed where appropriate.

In the event of a suspected or confirmed case of COVID-19 in the workplace (if the individual had been in the building up to seven days prior), enhanced environmental cleaning will be performed in accordance with [CDC](#) and GSA guidance.

If such enhanced cleaning is required, wait 24 hours before cleaning or disinfecting. If 24 hours is not feasible, wait as long as possible. Personnel and visitors may be asked to vacate the affected space until cleaning or disinfection is completed.

The agency's COVID-19 Coordination Team will determine the appropriate scope of workplace closures—in some cases, it may be a suite or offices or part of a floor, in other cases, it may include an entire building.

Hygiene

Hand sanitizer stations are to be available at the building entrance and throughout workspaces, and should contain FDA-approved hand sanitizer, with at least 60% ethanol. Personnel will be encouraged to wash their hands with soap and water or use hand sanitizer or alcohol-based hand rubs frequently.

Ventilation and Air Filtration

Additional modifications may be considered in accordance with CDC guidance, including as density increases. To the maximum extent feasible, indoor ventilation will be optimized to increase the proportion of outdoor ventilation, improve filtration, and reduce or eliminate recirculation.

Visitors

The number of visitors to the Federal workplace should be minimized, and efforts should be made to conduct visits virtually where possible. Any visitor should be screened, tested if appropriate, and asked to fill out a symptom questionnaire form before entering the workplace. Mask wearing requirements will also apply to any visitors to Federal or federally leased facilities.

Staggered Work Times and Cohort-Based Scheduling

Personnel will be encouraged to stagger work times to reduce density, minimize traffic volume in elevators, and avoid crowds during commuting. Agencies are also able to implement cohort-based scheduling, to help reduce exposure. Agency HR teams should work with OPM to understand the pay and leave implications surrounding staggered work schedules and other flexibilities.

Elevators

Occupational health professionals in each agency should assess elevators to determine safe occupancy. Individuals must wear masks in elevators and in elevator lobbies. The use of stairs by those who are physically able is strongly encouraged. Signage will be posted to explain current procedures.

Shared Spaces

Shared tools and equipment must be disinfected by users anytime the equipment is used by or transferred to a new person, and disinfectant wipes will be provided by the agency. This includes phones, computers and other communication devices, kitchen implements, and other office equipment. Refrigerators, water coolers, and coffee brewers with disposable cups (or a personal re-usable cup/container) and single serve condiments and creamers may be used with proper hand hygiene. Visual markers may be installed to promote physical distancing within common spaces, and furniture may be removed. Steps may be taken to limit the number of people who can use common spaces at any one time, and signage outlining these limits should be prominently displayed.

Federal Testing Plan for Federal Workforce

April 7, 2021

Key Points

- The purpose of this guidance is to provide federal agencies with strategies to consider for incorporating testing for SARS-CoV-2, the virus that causes COVID-19, into their COVID-19 workplace safety plan.
- Workplace-based testing for SARS-CoV-2 could identify federal employees and contractors with SARS-CoV-2 infection, and thus help prevent or reduce further transmission.
- This guidance includes descriptions of different types of SARS-CoV-2 tests; scenarios where SARS-CoV-2 testing may be used; and considerations for screening testing (testing asymptomatic workers with no known or suspected exposure to SARS-CoV-2).
- This guidance does not address testing requirements for the federal workforce serving in [healthcare facilities](#), [nursing home and long-term care facilities](#), or [correctional or detention facilities](#) where setting-specific recommendations apply.
- Each federal agency should apply this guidance according to the situation in their workplace or workforce.

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Background

In accordance with the [Executive Order on Protecting the Federal Workforce and Requiring Mask-Wearing](#), issued on January 21, 2021, and the Office of Management and Budget (OMB) [Memorandum M-21-15, COVID-19 Safe Federal Workplace: Agency Model Safety Principles](#), the Secretary of Health and Human Services, through the Director of the Centers for Disease Control and Prevention (CDC), was directed to develop a testing plan for the federal workforce based on the latest guidance from CDC.

Purpose and Scope

The purpose of this document is to provide federal agencies with strategies to consider for incorporating testing for SARS-CoV-2, the virus that causes COVID-19, into their COVID-19 workplace health and safety plan. This document provides guidance for testing federal employees and contractors in the executive branch of the U.S. Government. Each federal agency should apply this guidance according to the situation in its workplace or workforce.

This guidance is based on community transmission metrics and addresses the populations to be tested, testing types, frequency of testing, protocols for positive test results, and coordination with state, territorial, tribal, and local health officials for contact tracing.

This document does not address decisions regarding payment for or insurance coverage of such testing.

This document does not address testing requirements for the federal workforce serving in [healthcare facilities](#), [nursing home and long-term care facilities](#), or other healthcare settings (e.g., Veterans Affairs facilities, Indian Health Service, or Department of Defense healthcare facilities) or [correctional or detention facilities](#) (e.g., Bureau of Prisons facilities, Immigration and Customs Enforcement detention facilities) where setting-specific recommendations apply.

These considerations are meant to supplement, not replace, any federal, state, local, territorial, or tribal health and safety laws, rules, and regulations with which federal workplaces must comply. These strategies should be carried out in a manner consistent with existing laws and regulations, including laws protecting employee privacy and confidentiality. This guidance should also be carried out consistent with [Equal Employment Opportunity Commission \(EEOC\) guidance](#) regarding permissible testing policies and procedures.

Although testing has benefits for early identification and controlling outbreaks, it should be an integrated component of the [comprehensive workplace program](#) and not used as a substitute for other measures, such as [COVID-19 vaccination](#), proper [ventilation](#), [temperature and symptom screening](#), [physical distancing](#), [mask wearing](#), [hand hygiene](#), and [cleaning and disinfection](#).

Types of Tests

Viral tests, including antigen tests and [nucleic acid amplification tests \(NAATs\)](#) are used **to detect infection** with SARS-CoV-2 by evaluating whether the virus is present in respiratory specimens or saliva (NAAT only). Results help identify infected people who need to [isolate](#) from other people to minimize transmission. There are two types of [viral tests](#):

- NAATs, such as real-time reverse transcription-polymerase chain reaction (RT-PCR), are high-sensitivity, high-specificity tests for diagnosing SARS-CoV-2 infection. NAATs detect one or more viral ribonucleic acid (RNA) genes and indicate a current infection or a recent infection but, due to [prolonged viral RNA detection](#), are not always direct evidence for the presence of virus capable of replicating or of being transmitted to others. Most NAATs need to be processed in a laboratory and time to results can vary (~1–3 days), but some NAATs are [point-of-care tests](#) with results available in about 15–45 minutes.
- Antigen tests are immunoassays that detect the presence of a specific viral antigen. Antigen tests generally have similar specificity but are less sensitive than most NAATs. Most can be processed at the point of care with results available in minutes and thus can be used in screening programs to quickly identify those who are likely to be contagious. Because of the performance characteristics of antigen tests, it may be necessary to confirm some antigen test results (e.g., a negative test in persons with symptoms or a positive test in persons without symptoms) with a laboratory-based NAAT. Furthermore, based on the [authorization from FDA](#), some point-of-care NAATs cannot be used for confirmatory testing. Use of the [Antigen Testing Algorithm](#) is **recommended** to determine when confirmatory testing is needed.

Antibody (or serology) tests are used to **detect previous infection** with SARS-CoV-2. CDC does not recommend using [antibody testing](#) to diagnose current infection.

Intended Uses of SARS-CoV-2 Testing in Federal Workplaces

Diagnostic testing is intended to identify current infection and is performed when a person has signs or [symptoms consistent with COVID-19](#), or when a person is asymptomatic or presymptomatic but has recent known or suspected exposure to SARS-CoV-2.

Screening tests are intended to identify asymptomatic or presymptomatic infected persons without known or suspected exposure to SARS-CoV-2.

- Identifying persons who might be contagious but are unaware allows implementation of measures to prevent further transmission.
- Screening using tests that provide rapid results, such as [point-of-care](#) antigen tests, can be critical to interrupting SARS-CoV-2 transmission, particularly when done serially. This is especially important when community risk or [transmission levels](#) are substantial or high (see Table 2 below).

Considerations for Testing for SARS-CoV-2 Infection

Federal agencies can incorporate SARS-CoV-2 testing as part of a [comprehensive approach to reducing transmission in non-healthcare workplaces](#). CDC recommends a layered approach to reduce workplace exposures to SARS-CoV-2. [Symptom screening](#), [testing](#), and [contact tracing](#) are strategies to identify workers infected with SARS-CoV-2 so that actions can be taken to slow and stop the spread of the virus.

Disclosures and Consent Elements

Employees undergoing testing should [receive clear information](#) on

- The manufacturer and name of the test, the type of test, the purpose of the test, the performance specifications of the test, any limitations associated with the test, who will pay for the test, how the test will be performed, how and when they will receive test results, and;
- How to understand what the results mean, actions associated with negative or positive results, the potential need for confirmatory testing, the difference between testing for workplace screening versus for medical diagnosis, who will receive the results, how the results may be used, and any consequences for declining to be tested.

Individuals tested are required to receive patient fact sheets as part of the test's [emergency use authorization \(EUA\)](#).

Pursuant to the [Americans with Disabilities Act \(ADA\)](#), when employers implement any mandatory testing of employees, it must be "job related and consistent with business necessity."

- In the context of the COVID-19 pandemic, the [EEOC](#) notes that testing to determine if an employee has a SARS-CoV-2 infection with an "accurate and reliable test" is permissible as a condition to enter the workplace because an employee with the virus will "pose a direct threat to the health of others."
- EEOC notes that testing administered by employers that is consistent with current CDC guidance will meet the ADA's business necessity standard.
- Workplace-based testing should not be conducted without the [employee's consent](#).
- Employers who mandate workplace testing for SARS-CoV-2 infection should discuss further with employees who do not consent to testing and consider providing alternatives as feasible and appropriate, such as reassignment to tasks that can be performed via telework.

Testing Locations and Test Site Reporting Requirements

- Federal agencies should identify how to refer or provide diagnostic testing for employees who develop symptoms or have a known or suspected exposure to SARS-CoV-2. Some examples include an occupational medicine provider, nearby testing facilities, local healthcare institutions, or in consultation with the local or state health department.

- Alternatively, federal agencies can establish onsite capacity for diagnostic or screening testing. [Point-of-care testing sites](#) need to obtain a Clinical Laboratory Improvement Amendments (CLIA) [certificate of waiver](#). Some work-based healthcare professionals (e.g., occupational health nurses) may perform SARS-CoV-2 testing in work-based health centers if they are trained in specimen collection and performing the test according to the manufacturer's instructions. It is important that work-based healthcare professionals also have access to, and training on, the proper use of [personal protective equipment \(PPE\)](#).
- Every [SARS-CoV-2 testing site](#) (sometimes called COVID-19 testing site) is [required to report](#) diagnostic and screening test results to the appropriate state or [local health officials](#).

Recordkeeping

The Occupational Safety and Health Administration (OSHA) has issued [Guidance on Mitigating and Preventing the Spread of COVID-19 in the Workplace](#) and [interim guidance](#) for enforcing the requirements of [29 CFR Part 1904, Recording and Reporting Occupational Injuries and Illness](#), with respect to the recording of occupational illnesses, specifically cases of COVID-19.

- Under OSHA's recordkeeping requirements, COVID-19 is a [recordable illness](#), and employers are responsible for recording cases of COVID-19 on [Form 300 logs](#) if the following requirements are met:
 - (1) the case is a confirmed case of COVID-19;
 - (2) the case is [work-related](#) (as defined by [29 CFR 1904.5](#)); and
 - (3) the case involves one or more [relevant recording criteria](#) (set forth in [29 CFR 1904.7](#)) (e.g., medical treatment beyond first aid, days away from work).
- Employers must follow the requirements in [29 CFR 1904](#) when [reporting COVID-19 fatalities and hospitalizations to OSHA](#). More information is available on [OSHA's website](#). Employers should also report outbreaks to health departments as required and support their contact tracing efforts.
- Employers are encouraged to frequently check [OSHA Injury and Illness Recordkeeping and Reporting Requirements](#) webpage for updates.

SARS-CoV-2 Testing Scenarios

Diagnostic Testing

Testing persons with signs or symptoms consistent with COVID-19

Federal agencies should refer any employee with signs and symptoms of COVID-19 for diagnostic testing.

- CDC recommends that any unvaccinated person with [symptoms of COVID-19](#) be tested and follow the advice of the person's healthcare provider. Fully vaccinated federal employees with [symptoms of COVID-19](#) should consult their healthcare provider or a public health professional about the need for testing.
- Federal agencies should identify where to refer employees for diagnostic testing.
- Federal agencies should advise employees to [stay home if they are sick](#).
- Federal agencies should conduct daily in-person or virtual health checks (e.g., symptom and temperature screening) to identify employees with signs or symptoms consistent with COVID-19 before they enter a facility, in accordance with [CDC's Guidance for Businesses and Employers Responding to Coronavirus Disease 2019](#).

- Workers with COVID-19 symptoms should be immediately separated from other employees, customers, and visitors, and sent home or to a healthcare facility, depending on how severe their symptoms are, and follow [CDC guidance](#) for caring for oneself.
- Symptomatic workers waiting for test results should isolate at home to keep potentially infected workers out of the federal workplace.
- Federal employees are encouraged to implement flexible, nonpunitive sick leave and supportive policies as part of a comprehensive approach to prevent and reduce transmission among employees.
- Positive test results using a [viral test](#) should be interpreted to indicate that a person has COVID-19 and should not come to work and should [isolate at home](#). Decisions to [discontinue isolation](#) for workers with COVID-19 and allow them to return to the workplace may follow either a symptom-based, time-based, or a test-based strategy. In most cases, a test-based strategy to end isolation is not recommended (see the “How to determine resolution of infection” section below).

Testing asymptomatic persons with recent known or suspected exposure to SARS-CoV-2

Federal employees who have been exposed at work or outside of work should receive diagnostic testing.

- Because of the potential for asymptomatic and pre-symptomatic transmission of SARS-CoV-2, it is important that workers exposed to people with known or suspected COVID-19 be quickly identified and [quarantined](#). While CDC continues to recommend a 14-day quarantine for unvaccinated individuals who are close contacts of a person with COVID-19, viral testing may also be used as part of an option to [shorten the quarantine period](#).
- Viral testing is recommended for workers immediately after being identified as a close contact, and if negative, they should be tested again in 5–7 days after last exposure or immediately if symptoms develop during quarantine.
- For workers who previously received positive test results and do not have symptoms of COVID-19, retesting is not recommended for up to 3 months from their last positive test result, and they do not have to [quarantine](#) as long as they do not develop new symptoms.
- Most workers who are [fully vaccinated against COVID-19](#) are not required to quarantine or be tested if they are exposed, if they show no symptoms; however, they should still monitor for [symptoms of COVID-19](#) for 14 days following an exposure. Fully vaccinated workers in non-healthcare congregate settings and other high-density workplaces should be tested after an exposure.

Federal agencies should provide diagnostic testing for employees who had [close contact](#) (within 6 feet for a combined total of 15 minutes or more during a 24-hour period) with persons with COVID-19 at work.

- This testing should be provided at a convenient place and time and at no cost to the employee.

Federal agencies should refer or provide diagnostic testing for any employee who had [close contact](#) (within 6 feet for a combined total of 15 minutes or more during a 24-hour period) with persons with COVID-19 outside of work.

Federal agencies can consider providing diagnostic testing for employees who might have been in close contact (possible contacts) in the workplace with persons diagnosed with COVID-19.

- A risk-based approach to testing possible contacts of a worker with confirmed COVID-19 may be applied. Such an approach should take into consideration the likelihood of exposure, which is affected by the characteristics of the workplace and the results of contact investigations.

- Broader testing (i.e., testing beyond individually identified close contacts to those who are possible close contacts), such as targeting workers who worked in the same area and during the same shift, but not identified as close contacts, may be considered as part of a strategy to control the transmission of SARS-CoV-2 in the workplace. High-risk settings with potential for rapid and widespread dissemination of SARS-CoV-2 include:
 - Workplaces where workers are in the workplace for long periods (e.g., for 8–12 hours per shift) and have prolonged close contact with coworkers (e.g., working in an air traffic control tower).
 - Workplaces where employees live in communal living arrangements (e.g., workers on vessels or in wildland firefighter camps).
 - Workplaces with populations at [increased risk for severe illness](#) if they are infected and workplaces in [rural areas](#) or with [older workers](#).
 - Workplaces where the risk to the government's mission is high if an outbreak occurs
- Onsite testing capacity, if developed, may be exceeded when many workers participate in broader testing. [Performing Broad-Based Testing for SARS-CoV-2](#) provides consideration on the logistics of broader testing. Alternatively, broader testing can be performed at other testing locations.

Federal agencies can consider offering testing as part of an option to [shorten the quarantine period](#) to mitigate staffing shortages, but this is not the preferred option for reducing the risk of SARS-CoV-2 transmission.

- Federal agencies should consider workplace characteristics when determining if this additional transmission risk is acceptable (e.g., level of community transmission, ability to maintain physical distancing, proportion of employees at [increased risk for severe illness](#), and priority of operations).

Screening Testing

Testing asymptomatic persons without known or suspected exposure to SARS-CoV-2

[Viral testing](#) of asymptomatic workers without known or suspected exposure to SARS-CoV-2 (screening testing) may be useful to detect SARS-CoV-2 early and stop transmission quickly, particularly in areas with community COVID-19 indicators in the moderate to high categorizations (Table 2, Table 3). Persons with asymptomatic or presymptomatic SARS-CoV-2 infection are significant contributors to SARS-CoV-2 transmission. Screening testing should be used as an addition to, not as a replacement for, other prevention strategies.

[Fully vaccinated workers](#) should continue to follow employer guidance, such as [Executive Order on Protecting the Federal Workforce and Requiring Mask-Wearing](#) and [OMB Memorandum M-21-15, COVID-19 Safe Federal Workplace: Agency Model Safety Principles](#). Please see [Interim Public Health Recommendations for Fully Vaccinated People](#) for more information.

Types of federal workplaces that might consider implementing screening include:

- Workplaces at increased risk of introduction of SARS-CoV-2 (e.g., workplaces where workers are in close contact with the public or workplaces in communities with moderate to high transmission).
- Workplaces where there is a higher risk of SARS-CoV-2 exposure or transmission (e.g., workplaces where physical distancing is difficult and workers might be in close contact).
- Workplaces where SARS-CoV-2 infection among employees will lead to greater negative impact, such as
 - Workplaces in remote settings where medical evaluation or treatment may be delayed.
 - Workplaces where continuity of operations is a high priority.

- Workplaces with a high proportion of employees or other people (e.g., visitors) at [increased risk for severe illness](#).
- Workplaces where there is a high likelihood of impacting mission critical activities.

Guidance for federal agencies implementing a screening testing program

Type of test

- Important attributes to consider when selecting the type of test or tests used for screening include ready availability, cost, and rapid turnaround time.
- A screening program with either NAATs or antigen tests could be effective in helping to prevent transmission.
- Table 1 summarizes some characteristics of NAATs and antigen tests to consider for a screening testing program.
- Employees with a positive NAAT result should not come to work and should [isolate at home](#). A negative NAAT result is interpreted as no evidence of SARS-CoV-2 infection at the time when the testing specimen was collected. Employees who test negative should continue to take steps to [protect themselves and others](#).
- Some antigen test results should be considered presumptive (preliminary results) and require confirmatory testing. Asymptomatic employees who have a positive antigen screening test result should undergo a laboratory-based confirmatory NAAT. They should not come to work and should quarantine at home during confirmatory testing. Refer to CDC's [Interim Guidance for Antigen Testing for SARS-CoV-2](#) for more information on how to interpret antigen test results.

Table 1. NAATs and Antigen Test Differences to Consider When Planning a Screening Testing Program

Characteristic	NAATs	Antigen tests
Detection target	Viral ribonucleic acid (RNA)	Viral protein
Specimen type	Nasal, Nasopharyngeal, Oropharyngeal, Sputum (most tests), Saliva (few tests)	Nasal, Nasopharyngeal
Sensitivity	Varies by test, but generally high for laboratory-based tests but moderate to high for POC tests	Varies depending on the course of infection, but generally moderate-to-high at times of peak viral load*
Specificity	High	High
Advantages	Most sensitive test method available	Short turnaround time (approximately 15 minutes)
	Usually does not need to be repeated to confirm results	When performed at or near POC, allows for rapid identification of infected workers, thus preventing further virus transmission at the workplace
	Short turnaround time for NAAT POC tests, but few available	Lower cost per test
Disadvantages	Higher cost per test	May need confirmatory testing
	Longer turnaround time (1–3 days) is less effective for interrupting virus transmission, except for POC versions	Less sensitive (more false negative results) compared to NAATs, especially among asymptomatic people
	May detect viral RNA after risk of transmission has passed	

POC, point of care.

*The decreased sensitivity of antigen tests might be offset if the point-of-care antigen tests are repeated more frequently (i.e., serial testing at least weekly).

Frequency of screening testing

Serial testing is testing that is repeated over time (e.g., weekly), either on the same individual or on the same group (e.g., a workplace or segment of a workplace).

- Serial testing is primarily used for screening but could also be used for diagnostic purposes.
- Because there could be a delay between the time a person is exposed to the virus and the time the infection can be detected by testing, early testing after exposure at a single time point might miss many infections.
- Serial testing can be more likely to detect infection than testing done at a single point in time. It can also help identify persons who were originally not exposed nor infected but who subsequently became exposed and infected during the time between tests.

Federal workplaces should consider the following factors when determining the frequency of screening testing:

- Availability of testing, short turnaround time (e.g., same day), and cost.
- Latency time period between exposure and development of a positive SARS-CoV-2 viral test.
- [Workplace characteristics.](#)
- Level of community transmission (Table 2, Table 3).
- How many employees tested positive during previous rounds of testing.
- Relevant experience with outbreaks at the workplace.

Table 2. Community Indicators at the County Level[@]

Indicator	Low Transmission (Blue)	Moderate Transmission (Yellow)	Substantial Transmission (Orange)	High Transmission (Red)
Cumulative number of new cases per 100,000 persons within the last 7 days [*]	<10	10–49	50–99	≥100
Percentage of NAATs that are positive during the last 7 days [†]	<5%	5%–7.9%	8%–9.9%	≥10%

Indicators should be calculated for counties or core based statistical areas, although in rural areas with low population density, multiple jurisdictions might need to be combined to make the indicators more useful for decision-making. The indicators listed can be found by county on CDC's [COVID Data Tracker Website under "county view."](#)

[@] If the two indicators suggest different transmission levels, the higher level should be selected.

^{*} Number of new cases in the county (or other administrative level) in the last 7 days divided by the population in the county (or other administrative level) and multiplying by 100,000.

[†] Number of positive tests in the county (or other administrative level) during the last 7 days divided by the total number of tests resulted in the county (or other administrative level) during the last 7 days. [Calculating Severe Acute Respiratory Syndrome Coronavirus 2 \(SARS-CoV-2\) Laboratory Test Percent Positivity: CDC Methods and Considerations for Comparisons and Interpretation.](#)

Table 3. Potential Actions based on Community Indicator Level

Prevention Strategy	Low Transmission (Blue)	Moderate Transmission (Yellow)	Substantial Transmission (Orange)	High Transmission (Red)
Facilitate diagnostic testing for symptomatic persons and all close contacts of cases				
Facilitate diagnostic testing for symptomatic persons and all close contacts of cases				
Implement screening testing of workplaces or segments of workplaces at least weekly plus facilitate diagnostic testing of symptomatic persons and close contacts				
Implement screening testing of workplaces or segments of workplaces at least weekly plus facilitate diagnostic testing of symptomatic persons and close contacts				

Other considerations

[State, local, territorial, and tribal health departments](#) may be able to provide assistance on any local context or guidance impacting a federal workplace.

Before testing a large proportion of asymptomatic workers without known or suspected exposure, federal agencies should have a plan in place for how they will do the following:

- Ensure access to clinical evaluation and confirmatory testing when needed.
- Ensure [test results are reported](#) to public health departments.
- Modify operations based on test results.
- Collaborate with public health departments in workplace case investigation and contact tracing.
- Manage a higher risk of false positive results in a low prevalence population.

Federal agencies should provide testing for employees traveling on official business in accordance with CDC guidance on [domestic](#) and [international travel](#) during COVID-19.

- All travelers are required to wear a mask on all planes, buses, trains, and other forms of public transportation traveling into, within, or out of the United States and in U.S. transportation hubs such as airports and stations.
- All travelers should know and follow all recommendations and requirements at every travel destination on their journey, including requirements for their home jurisdiction (i.e., all local, state, territorial and international requirements).
- All travelers should self-monitor for COVID-19 symptoms after travel.
- [All air passengers coming to the United States](#), including U.S. citizens, are **required** to have a negative SARS-CoV-2 test result or documentation of recovery from COVID-19 before they board a flight to the United States.
- CDC recommends that unvaccinated travelers get tested with a viral test 1–3 days before travel and 3–5 days after travel, combined with a period of 7 days of self-quarantine. Employees should not travel if they have a positive test result or are awaiting results.
- [Fully vaccinated](#) travelers do not need to get tested before or after [domestic travel](#) or quarantine unless their destination requires it.

- For [international travel](#), CDC recommends that fully vaccinated travelers do not need to get tested before leaving the United States unless the travel destination requires it. They should get tested 3–5 days after travel but do not need to quarantine in the United States following international travel.

How to Determine Resolution of Infection

Federal agencies should follow CDC guidance on [Disposition of Non-Hospitalized Patients with COVID-19](#).

- The decision to end isolation and return to the workplace for employees with suspected or confirmed SARS-CoV-2 infection should be made in the context of clinical and local circumstances.
- In most cases, a test-based strategy to end isolation and return to the workplace is not recommended.

Additional Resources

CDC

- [CDC COVID-19 Website](#)
- [CDC Data Tracker](#)
- [Business and Workplaces](#)
- [General Business Frequently Asked Questions](#)
- [Overview of Testing for SARS-CoV-2 \(COVID-19\)](#)
- [Testing in Non-Healthcare Workplaces](#)
- [Testing Strategy for Coronavirus \(COVID-19\) in High-Density Critical Infrastructure Workplaces after a COVID-19 Case is Identified](#)
- [Public Health Recommendations for Fully Vaccinated People](#)

OSHA

- [OSHA COVID-19 Website](#)
- [Protecting Workers: Guidance on Mitigation and Preventing the Spread of COVID-19 in the Workplace](#)
- [OSHA Injury and Illness Recordkeeping and Reporting Requirements](#)

FDA

- [Emergency Use Authorizations \(EUAs\) for SARS-CoV-2 Diagnostic Tests](#)

Safer Federal Workforce Task Force
COVID-19 Workplace Safety: Agency Model Safety Principles
Issued July 29, 2021

Purpose

The purpose of this document is to provide model safety principles for executive departments and agencies (hereafter, “agency” and collectively, “agencies”) for their COVID-19 workplace safety plans. In Executive Order No. 13991, President Biden established the [Safer Federal Workforce Task Force](#) to oversee the development and implementation of agency COVID-19 workplace safety plans across the Federal Government.

Agencies should incorporate these principles into their existing COVID-19 workplace safety plans. Agencies with onsite contractors should address how the protocols below are being applied to contractor personnel to promote Federal workplace safety in the context of COVID-19.

Overview of Model Principles

The Federal Government is committed to addressing essential work requirements consistent with best public health practices. The Administration’s paramount concern is the health and safety of all Federal employees, onsite contractors, and individuals interacting with the Federal workforce.

The principles presented here are aligned with the latest guidance from the Centers for Disease Control and Prevention (CDC) for [employers](#) and for [fully vaccinated people](#) and the Occupational Safety and Health Administration (OSHA) on [protecting workers](#), based on evolving understanding of the pandemic. These principles will be reassessed over time, as conditions warrant and as CDC guidelines are updated.

Where a locality has imposed additional pandemic-related requirements more protective than those set forth in these model safety principles, those requirements should be followed in Federal buildings and on Federal land in that locality.

Goal

The health and safety of the Federal workforce is the Administration’s highest priority.

Key Updates to Model Safety Principles

Consistent with CDC guidance, in areas of high or substantial transmission (see the [CDC COVID-19 Data Tracker County View](#)), Federal employees, contractors, and visitors must wear a mask inside Federal buildings, except for the limited exceptions discussed in the section on *Face Masks and Physical Distancing* below. Individuals who are not fully vaccinated must wear a mask regardless of community transmission level.

Federal agencies need to ask about the vaccination status of Federal employees and onsite contractors—employees and onsite contractors must sign an attestation confirming their vaccination status, or they will be treated as not fully vaccinated for purposes of safety protocols. Federal agencies also must establish a program to test not fully vaccinated Federal employees and onsite contractors weekly or twice-weekly.

In addition to receiving paid time off to be vaccinated and to deal with any side effects, employees will receive paid time off if they need to accompany a family member being vaccinated.

Fully vaccinated Federal employees and onsite contractors do not need to physically distance or participate in weekly screening testing, and are not subject to any Government-wide restrictions on official travel (although agency travel policies still apply). In areas of high or substantial transmission, they need to wear a mask in public indoor settings in Federal buildings. In areas of low or moderate transmission, they do not need to wear a mask.

Those Federal employees and onsite contractors who are not fully vaccinated or decline to provide their vaccination status must wear a mask, physically distance, and comply with a weekly or twice-weekly screening testing requirement, and are subject to Government-wide restrictions on official travel.

Visitors must provide information on their vaccination status and comply with the requisite safety protocols. Visitors who are not fully vaccinated or decline to provide their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a Federal building or in-person participation in a Federally hosted meeting, event, or conference. The requirement to provide information on vaccination status and a negative COVID-19 test does not apply to members of the public entering a Federal building or Federal land to obtain a public service or benefit. If they are not fully vaccinated, these visitors must comply with all relevant CDC guidance, including wearing a mask and physically distancing from other people.

Health and Safety

Information about Vaccination

The Administration strongly encourages all Americans who are eligible for vaccination, including Federal employees and contractors, to be vaccinated. Employees will receive paid time off to be vaccinated and to deal with any side effects. Employees will also receive paid time off to accompany a family member being vaccinated. For this purpose, a “family member” is an individual who meets the definition of that term in OPM’s leave regulations (see 5 CFR 630.201).

Given the different safety protocols for individuals who are fully vaccinated and those who are not fully vaccinated, agencies need to ask about the vaccination status of Federal employees and onsite contractors. Employees and onsite contractors must attest to the truthfulness of the response they provide. If an employee or onsite contractor chooses not to provide a response, they will be treated as not fully vaccinated for the purposes of these protocols. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act, and any applicable collective bargaining obligations. When an employee or contractor discloses that they are not fully vaccinated or declines to complete the attestation, agencies should treat that individual as not fully vaccinated for purposes of implementing safety measures, including with respect to mask wearing, physical distancing, testing, travel, and quarantine as discussed in further detail below.

Visitors to Federal buildings should also be asked to provide information about vaccination status. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act. Visitors who are not fully vaccinated or who decline to provide information about their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a Federal building. See the section below on *Meetings, Events, and Conferences* for how these visitor requirements apply to in-person participants in meetings, events, and conferences hosted by agencies.

These requirements related to the provision of information about vaccination and provision of proof of a recent negative COVID-19 test do not apply to members of the public entering a Federal building or Federal land to obtain a public service or benefit. If they are not fully vaccinated, these visitors must comply with all relevant CDC guidance, including wearing a mask and physically distancing from other people.

Levels of Community Transmission

For purposes of this guidance, when determining levels of community transmission in a given area, agencies should reference the [CDC COVID-19 Data Tracker County View](#). Agencies can use discretion in determining the counties relevant to the determination of the level of community transmission in a given area for a given Federal facility. For example, agencies may consider the county in which an agency facility is located as well as the transmission levels of surrounding local counties from which employees commute to the facility.

Telework and Remote Work

Agencies should utilize telework and remote work consistent with the principles set forth in [OMB Memorandum M-21-25](#) and agency plans for reentry and post-reentry.

COVID-19 Coordination Team

Each agency should maintain its COVID-19 Coordination Team, as detailed in [OMB Memorandum M-21-15](#). This team should, at a minimum, include a representative from: each component agency (if applicable); the appropriate human resources office(s); occupational safety and health experts; executive leadership; legal counsel; and a public health expert. If such a public health expert does not exist at the agency, the Safer Federal Workforce Task Force will designate someone. The team should meet regularly to review compliance with agency COVID-19 workplace safety plans and protocols, consider potential revisions to agency COVID-19 workplace safety plans and protocols pursuant to guidance from the Safer Federal Workforce Task Force and current CDC guidelines, and evaluate any other operational needs related to COVID-19 workplace safety. The team should coordinate all decisions with Facility Security Committees, as appropriate. For privately owned facilities leased by the Federal Government, the team must coordinate with the General Services Administration (GSA), where appropriate, and the lessor's designated representative.

Face Masks and Physical Distancing

Individuals who are not fully vaccinated must wear a mask regardless of community transmission level. In areas of high or substantial transmission, fully vaccinated people must wear a mask in public indoor settings, except for limited exceptions discussed in this section.

In areas of low or moderate transmission, in most settings, [fully vaccinated](#) people generally do not need to wear a mask or physically distance in Federal buildings or on Federal land, except where required by Federal, State, local, Tribal, or territorial laws, rules, or regulations. Fully vaccinated individuals might choose to wear a mask regardless of the level of transmission for a variety of reasons. Nothing in CDC guidance precludes an employee from wearing a mask, if the employee so chooses. CDC's guidance for mask wearing and physical distancing in specific settings, including [healthcare](#), [transportation](#), [correctional and detention facilities](#), and [schools](#), should be followed, as applicable.

Federal employees and onsite contractors who are not fully vaccinated or who decline to provide their vaccination status—or who are in an area of substantial or high transmission—must [wear a mask](#) that [covers their nose and mouth](#), and that is in accordance with current CDC guidance. CDC [recommends](#) the following: disposable masks, masks that fit properly (snugly around the nose and chin with no large gaps around the sides of the face), masks made with breathable fabric (such as cotton), masks made with tightly woven fabric (i.e., fabrics that do not let light pass through when held up to a light source), masks with two or three layers, and masks with inner filter pockets. Agencies should not allow novelty or non-protective masks, masks with ventilation valves, or face shields as a substitute for masks.

Individuals who are not fully vaccinated or who decline to provide information about their vaccination status—including employees, onsite contractors, and those visitors who are required to provide vaccination status—must maintain distance and properly wear masks. To the extent practicable, individuals who are not fully vaccinated or who decline to provide information about their vaccination status should maintain a distance of at least six feet from others at all times, consistent with CDC guidelines, including in offices, conference rooms, and all other communal and work spaces.

In the vast majority of cases, employees who are not vaccinated due to disability or religious practices or beliefs will be able to follow the safety protocols for not fully vaccinated individuals as a reasonable accommodation. In the rare case where they cannot, or where it is otherwise required by law, other reasonable accommodations should be made, barring undue hardship. Some individuals may require accommodations under applicable law relating to masking requirements, and such accommodations should be in accordance with existing [Equal Employment Opportunity Commission guidance](#).

For individuals who are required to wear a mask:

- Appropriate masks should be worn consistently and correctly (over mouth and nose).
- Appropriate masks should be worn in any common areas or shared workspaces (including open floorplan office space, cubicle embankments, and conference rooms).
- In general, people do not need to wear masks when outdoors. However, [consistent with CDC guidance](#), those who are not fully vaccinated should wear a mask in crowded outdoor settings or during outdoor activities that involve sustained close contact with other people who are not fully vaccinated.
- Agencies may provide for exceptions consistent with CDC guidelines, for example, when an individual is alone in an office with floor to ceiling walls and a closed door, or for a limited time when eating or drinking and maintaining distancing in accordance with CDC guidelines.

Masked individuals may be asked to lower their masks briefly for identification purposes in compliance with safety and security requirements.

Masks do not provide the same level of protection as respirators and should not replace personal protective equipment required or recommended at the workplace.

Testing

Agencies must establish a program to test Federal employees and contractors working onsite who are not fully vaccinated, or who decline to provide information about their vaccination status, for COVID-19 weekly or twice-weekly. Agencies do not need to regularly test employees and contractors who are fully vaccinated.

Contact Tracing

The agency's COVID-19 Coordination Team will collaborate with and support the contact tracing programs of local health departments to help identify, track, and manage contacts of COVID-19 cases.

The team will engage in coordination with facilities staff to implement infection control and workplace safety efforts once informed of a known or suspected case of COVID-19 (due either to specific symptoms or a positive test).

The team should ensure that the agency makes disclosures to local public health officials, as required or necessary, to provide for the health and safety of Federal employees, contractors, and the general public, in accordance with local public health mandates. If COVID-19 cases occur within a specific building or work setting, it will be the responsibility of that agency's COVID-19 Coordination Team (or a field office or agency component designee) to determine—in consultation with local public health officials—appropriate next steps. Agencies should be transparent in communicating related information to the workforce, as relevant and appropriate; disclosures must be consistent with Federal, State, and local privacy and confidentiality laws and regulations.

Travel

Federal employees should adhere strictly to CDC [guidelines](#) before, during, and after travel.

For Federal employees who are fully vaccinated, there are no Government-wide restrictions on travel (although agency travel policies still apply).

For Federal employees who are not fully vaccinated or who decline to provide information about their vaccination status, official domestic travel should be limited to only necessary mission-critical trips. International travel should also be avoided, if at all possible, unless it is mission critical (e.g., military deployments, COVID-19 response deployments or activities, diplomats traveling, high-level international negotiations that cannot occur remotely). Heads of agencies should issue specific guidance to account for the particulars of their agency's mission.

Meetings, Events, and Conferences

Should an agency intend to host an in-person meeting, conference, or event that will be attended by more than 50 participants—regardless of whether participants include members of the public—the agency must first seek the approval of its agency head, in consultation with the agency's COVID-19 Coordination Team.

In-person attendees at any meetings, conferences, and events hosted by an agency, regardless of size, must be asked to provide information about vaccination status. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act. In-person attendees who are not fully vaccinated or decline to provide information about their vaccination status must provide proof of a negative COVID-19 test completed no later than the previous 3 days and comply with masking and physical distancing requirements for individuals who are not fully vaccinated consistent with the requirements for visitors in the *Face Masks and Physical Distancing* section above. In-person attendees in areas of high or substantial transmission must wear a mask in public indoor settings regardless of vaccination status.

Symptom Monitoring

If Federal employees, onsite contractors, or visitors have symptoms consistent with COVID-19, they should not enter a Federal workplace.

Federal employees and contractors working on site should regularly complete virtual or in-person health checks (ask about symptoms, close contact with someone with SARS-CoV-2 infection, and SARS-CoV-2 testing and diagnosis status). The agency will use this information to assess the individual's risk level and

to determine whether the individual should be allowed entry to the workplace. Visitors may be asked to complete symptom screening before entering a Federal facility. In developing these tools, agencies may adapt the one developed by [CDC](#).

Any individual, regardless of vaccination status, who develops [any symptoms consistent with COVID-19](#) during the workday must immediately isolate, wear a mask (if the individual is not already doing so and one is available), notify their supervisor, and promptly leave the workplace. Agencies should have processes in place to provide advice and support to supervisors on any related reporting or human resources requirements.

Quarantine, Isolation, and Steps for Fully Vaccinated Individuals Following Exposure to Someone with Suspected or Confirmed COVID-19

Any individual with a suspected or confirmed case of COVID-19 will be advised to isolate, [pursuant to CDC guidelines](#), and in compliance with State, local, and Tribal laws and regulations. Personnel who are not fully vaccinated and who have had a close contact with someone who has tested positive for COVID-19 should follow [CDC](#) and State, local, and Tribal guidance for quarantine.

Individuals who have been fully vaccinated and have had close contact with someone with suspected or confirmed COVID-19 should get tested 3-5 days after exposure, even if they do not have symptoms. They should also wear a mask indoors in public for 14 days following exposure or until their test result is negative. If their test result is positive, they should isolate for 10 days.

Confidentiality and Privacy

All medical information collected from individuals, including vaccination information, test results, and any other information obtained as a result of testing and symptom monitoring, will be treated in accordance with applicable laws and policies on confidentiality and privacy, and will be accessible only to those with a need to know. Agencies should consult their Senior Agency Officials for Privacy on matters related to the handling of personally identifiable information and identify a point of contact for all questions relating to personal medical information.

Workplace Operations

Occupancy

Agencies may establish occupancy limits for specific workplaces as a means of facilitating physical distancing. Note that by reducing the number of people in a space, occupancy limits also increase the heating, ventilation, and air conditioning delivery of outdoor air per person.

Environmental Cleaning

Agencies should ensure regular cleaning of common use, high-touch, and high-density spaces, such as lobbies, restrooms, elevators, and stairwells. Office space that is in regular use is to be cleaned regularly, and in accordance with [CDC guidelines](#). Wipes and other [Environmental Protection Agency-approved disinfectants](#) will be made available for use by individuals to wipe down workstations and related personal property. Physical barriers, such as plexiglass shields, may be installed, where appropriate.

In the event of a suspected or confirmed case of COVID-19 in the workplace, agencies should ensure enhanced environmental cleaning of the spaces that the individual occupied or accessed in accordance with CDC and, where applicable, GSA guidance, which provides as follows:

- If fewer than 24 hours have passed since the person who is sick or diagnosed with COVID-19 has been in the space, clean and disinfect the space.
- If more than 24 hours have passed since the person who is sick or diagnosed with COVID-19 has been in the space, cleaning is enough. You may choose to also disinfect depending on certain conditions or everyday practices required by your facility.
- If more than 3 days have passed since the person who is sick or diagnosed with COVID-19 has been in the space, no additional cleaning (beyond regular cleaning practices) is needed.

If enhanced cleaning is required, wait as long as possible (at least several hours) before cleaning and disinfecting. Extended wait periods allow increased opportunity for viral deactivation to occur naturally, while also allowing time for aerosols to settle, prior to surface disinfection.

The agency's COVID-19 Coordination Team will determine the appropriate scope of workplace closures needed—in some cases, it may be a suite or individual offices or part of a floor, in other cases, it may include an entire building.

Hygiene

Hand sanitizer stations are to be available at the building entrance and throughout workspaces. Hand sanitizers should contain at least 60% alcohol and be manufactured in accordance with the requirements of the U.S. Food and Drug Administration (FDA). Ingredients should be listed on a “Drug Facts” label. Agencies should ensure the hand sanitizer is not on the FDA's [do not use](#) list.

Ventilation and Air Filtration

Modifications to ventilation systems should be considered in accordance with CDC [guidance](#), especially as building population density increases. To the maximum extent feasible, indoor ventilation will be optimized to increase the proportion of outdoor air and improve filtration. Deployment of portable high-efficiency particulate air (HEPA) cleaners should be considered for higher-risk spaces (e.g., health clinics).

Collective Bargaining Obligations

Consistent with President Biden's policy to support collective bargaining, agencies are reminded to satisfy applicable collective bargaining obligations under 5 U.S.C. Chapter 71 when implementing workplace safety plans. Agencies are also strongly encouraged to communicate regularly with employee representatives on workplace safety matters.

Safer Federal Workforce Task Force

COVID-19 Workplace Safety: Agency Model Safety Principles

Last Updated September 13, 2021 (Previously Updated July 29, 2021)

Recent Updates

- Federal Executive Branch employees must be fully vaccinated, except in limited circumstances where an employee is legally entitled to a reasonable accommodation. Agencies must work expeditiously so that their employees are fully vaccinated as quickly as possible and by no later than November 22, 2021.
- With the government-wide adoption and implementation of these vaccination requirements, agencies are no longer required to establish a screening testing program for employees or onsite contractor employees who are not fully vaccinated, although they may do so.
- The President has [announced](#) that Federal contractor employees will be required to be vaccinated. Prior to being contractually required to be vaccinated, onsite contractor employees who are not fully vaccinated and are not part of an agency testing program must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a Federal building.

Purpose

The purpose of this document is to provide model safety principles for executive departments and agencies (hereafter, “agency” and collectively, “agencies”) for their COVID-19 workplace safety plans. In Executive Order No. 13991, President Biden established the Safer Federal Workforce Task Force to oversee the development and implementation of agency COVID-19 workplace safety plans across the Federal Government. In his Executive Order on *Requiring Coronavirus Disease 2019 Vaccination for Federal Employees* and his Executive Order on *Ensuring Adequate COVID Safety Protocols for Federal Contractors*, President Biden directed the Task Force to issue guidance on implementation of the requirements in those Orders.

Agencies should incorporate these model safety principles into their existing COVID-19 workplace safety plans.

Agencies with onsite contractor employees should address how the protocols below are applied to those individuals to promote Federal workplace safety in the context of COVID-19.

Overview of Model Principles

The Federal Government is committed to addressing essential work requirements consistent with best public health practices. The Administration’s paramount concern is the health and safety of all Federal employees, onsite contractor employees, and individuals interacting with the Federal workforce.

The principles presented here are aligned with the latest guidance from the Centers for Disease Control and Prevention (CDC) for employers and for fully vaccinated people and the Occupational Safety and Health Administration (OSHA) on protecting workers, based on evolving understanding of the pandemic. These principles will be reassessed over time, as conditions warrant and as CDC guidelines are updated.

Where a locality has imposed additional pandemic-related requirements more protective than those set forth in these model safety principles, those requirements should be followed in Federal buildings and on Federal land in that locality.

Goal

The health and safety of the Federal workforce is the Administration's highest priority.

Health and Safety

Vaccination

To ensure the safety of the Federal workforce, Federal employees must be fully vaccinated, except in limited circumstances where an employee is legally entitled to a reasonable accommodation. Agencies must work expeditiously so that their employees are fully vaccinated as quickly as possible and by no later than November 22, 2021.

When a Federal employee is required to be vaccinated, the time the employee spends obtaining any COVID-19 vaccination (including travel time) is duty time; thus, there is no need for the employee to take administrative leave for such time during the employee's basic tour of duty. Employees may not be credited with administrative leave for time spent getting a vaccination. If, due to unforeseen circumstances, the employee is unable to obtain the vaccine during basic tour of duty hours the normal overtime hours of work rules apply.

Employees will receive paid time off to address any side effects. Employees will also receive paid time off to accompany a family member being vaccinated. For this purpose, a "family member" is an individual who meets the definition of that term in OPM's leave regulations (see 5 CFR 630.201).

Some contractor employees may not yet be subject to a contractual requirement to be vaccinated, and some visitors may not be fully vaccinated or decline to provide information on their vaccination status. Given the different safety protocols for individuals who are fully vaccinated and those who are not fully vaccinated, agencies need to ask about the vaccination status of visitors to Federal buildings and onsite contractor employees who are not yet contractually required to be vaccinated. Individuals must attest to the truthfulness of the response they provide. When an individual discloses that they are not fully vaccinated or declines to provide information on their vaccination status, agencies should treat that individual as not fully vaccinated for purposes of implementing safety measures, including with respect to mask wearing and physical distancing.

Onsite contractor employees who are not yet contractually required to be vaccinated and who are not fully vaccinated or who decline to provide information about their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a Federal building—as noted below, if a contractor employee is regularly tested pursuant to an agency testing program, they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a Federal building unless required to by the agency testing program.

Visitors to Federal buildings who are not fully vaccinated or who decline to provide information about their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a Federal building. See the section below on Meetings, Events, and Conferences

for how visitor requirements apply to in-person participants in meetings, events, and conferences hosted by agencies.

These requirements related to the provision of information about vaccination and provision of proof of a recent negative COVID-19 test do not apply to members of the public entering a Federal building or Federal land to obtain a public service or benefit. If they are not fully vaccinated, these visitors must comply with all relevant CDC guidance, including wearing a mask and physically distancing from other people.

Levels of Community Transmission

For purposes of this guidance, when determining levels of community transmission in a given area, agencies should reference the CDC COVID-19 Data Tracker County View. Agencies can use discretion in determining the counties relevant to the determination of the level of community transmission in a given area for a given Federal facility. For example, agencies may consider the county in which an agency facility is located as well as the transmission levels of surrounding local counties from which employees commute to the facility.

Telework and Remote Work

Agencies should utilize telework and remote work consistent with the principles set forth in OMB Memorandum M-21-25 and agency plans for reentry and post-reentry.

COVID-19 Coordination Team

Each agency should maintain its COVID-19 Coordination Team, as detailed in OMB Memorandum M-21-15. This team should, at a minimum, include a representative from: each component agency (if applicable); the appropriate human resources office(s); occupational safety and health experts; executive leadership; legal counsel; and a public health expert. If such a public health expert does not exist at the agency, the Safer Federal Workforce Task Force will designate someone. The team should meet regularly to review compliance with agency COVID-19 workplace safety plans and protocols, consider potential revisions to agency COVID-19 workplace safety plans and protocols pursuant to guidance from the Safer Federal Workforce Task Force and current CDC guidelines, and evaluate any other operational needs related to COVID-19 workplace safety. The team should coordinate all decisions with Facility Security Committees, as appropriate. For privately owned facilities leased by the Federal Government, the team must coordinate with the General Services Administration (GSA), where appropriate, and the lessor's designated representative.

Face Masks and Physical Distancing

Federal employees must be fully vaccinated, except in limited circumstances where an employee is legally entitled to a reasonable accommodation. In addition, some contractor employees may not yet be subject to a contractual requirement to be vaccinated, and some visitors may not be fully vaccinated or decline to provide information on their vaccination status.

Individuals who are not fully vaccinated must wear a mask regardless of community transmission level. In areas of high or substantial transmission, fully vaccinated people must wear a mask in public indoor settings, except for limited exceptions discussed in this section.

In areas of low or moderate transmission, in most settings, fully vaccinated people generally do not need to wear a mask or physically distance in Federal buildings or on Federal land, except where required by Federal, State, local, Tribal, or territorial laws, rules, or regulations. Fully vaccinated individuals might choose to wear a mask regardless of the level of transmission for a variety of reasons. Nothing in CDC guidance precludes an employee from wearing a mask, if the employee so chooses. CDC's guidance for mask wearing and physical distancing in specific settings, including healthcare, transportation, correctional and detention facilities, and schools, should be followed, as applicable.

Individuals who are not fully vaccinated or who decline to provide their vaccination status—or who are in an area of substantial or high transmission—must wear a mask that covers their nose and mouth, and that is in accordance with current CDC guidance. CDC recommends the following: disposable masks, masks that fit properly (snugly around the nose and chin with no large gaps around the sides of the face), masks made with breathable fabric (such as cotton), masks made with tightly woven fabric (i.e., fabrics that do not let light pass through when held up to a light source), masks with two or three layers, and masks with inner filter pockets. Agencies should not allow novelty or non-protective masks, masks with ventilation valves, or face shields as a substitute for masks.

In addition to properly wearing a mask, individuals who are not fully vaccinated or who decline to provide information about their vaccination status must maintain distance. To the extent practicable, individuals who are not fully vaccinated or who decline to provide information about their vaccination status should maintain a distance of at least six feet from others at all times, consistent with CDC guidelines, including in offices, conference rooms, and all other communal and work spaces.

For individuals who are required to wear a mask:

- Appropriate masks should be worn consistently and correctly (over mouth and nose).
- Appropriate masks should be worn in any common areas or shared workspaces (including open floorplan office space, cubicle embankments, and conference rooms).
- In general, people do not need to wear masks when outdoors. However, consistent with CDC guidance, those who are not fully vaccinated should wear a mask in crowded outdoor settings or during outdoor activities that involve sustained close contact with other people who are not fully vaccinated.
- Agencies may provide for exceptions consistent with CDC guidelines, for example, when an individual is alone in an office with floor to ceiling walls and a closed door, or for a limited time when eating or drinking and maintaining distancing in accordance with CDC guidelines.

Masked individuals may be asked to lower their masks briefly for identification purposes in compliance with safety and security requirements.

Masks do not provide the same level of protection as respirators and should not replace personal protective equipment required or recommended at the workplace.

Testing

Agencies may establish a program to test Federal employees who are not fully vaccinated for COVID-19. Agencies may also test contractor employees working onsite who are not fully vaccinated as part of a

testing program—if contractor employees are tested as part of an agency testing program, they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a Federal building unless required to by the agency testing program.

Agencies must have a process in place for employee diagnostic testing after a workplace exposure.

Contact Tracing

The agency's COVID-19 Coordination Team will collaborate with and support the contact tracing programs of local health departments to help identify, track, and manage contacts of COVID-19 cases.

The team will engage in coordination with facilities staff to implement infection control and workplace safety efforts once informed of a known or suspected case of COVID-19 (due either to specific symptoms or a positive test).

The team should ensure that the agency makes disclosures to local public health officials, as required or necessary, to provide for the health and safety of Federal employees, contractor employees, and the general public, in accordance with local public health mandates. If COVID-19 cases occur within a specific building or work setting, it will be the responsibility of that agency's COVID-19 Coordination Team (or a field office or agency component designee) to determine—in consultation with local public health officials—appropriate next steps. Agencies should be transparent in communicating related information to the workforce, as relevant and appropriate; disclosures must be consistent with Federal, State, and local privacy and confidentiality laws and regulations.

Travel

Federal employees should adhere strictly to CDC guidelines before, during, and after travel.

For Federal employees who are fully vaccinated, there are no Government-wide restrictions on travel (although agency travel policies still apply).

For the limited number of Federal employees who are not fully vaccinated, agencies should generally observe the following guidance, unless it is contrary to a reasonable accommodation to which an employee is legally entitled. Official domestic travel should be limited to only necessary mission-critical trips. International travel should also be avoided, if at all possible, unless it is mission critical (e.g., military deployments, COVID-19 response deployments or activities, diplomats traveling, high-level international negotiations that cannot occur remotely). Heads of agencies should issue specific guidance to account for the particulars of their agency's mission.

Meetings, Events, and Conferences

Should an agency intend to host an in-person meeting, conference, or event that will be attended by more than 50 participants—regardless of whether participants include members of the public—the agency must first seek the approval of its agency head, in consultation with the agency's COVID-19 Coordination Team.

In-person attendees at any meetings, conferences, and events hosted by an agency, regardless of size, must be asked to provide information about vaccination status. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act. In-person attendees who are not fully vaccinated or decline to provide

information about their vaccination status must provide proof of a negative COVID-19 test completed no later than the previous 3 days and comply with masking and physical distancing requirements for individuals who are not fully vaccinated consistent with the requirements for visitors in the Face Masks and Physical Distancing section above. In-person attendees in areas of high or substantial transmission must wear a mask in public indoor settings regardless of vaccination status.

Symptom Monitoring

If Federal employees, onsite contractors, or visitors have symptoms consistent with COVID-19, they should not enter a Federal workplace.

Federal employees and contractor employees working on site should regularly complete virtual or in-person health checks (ask about symptoms, close contact with someone with SARS-CoV-2 infection, and SARS-CoV-2 testing and diagnosis status). The agency will use this information to assess the individual's risk level and to determine whether the individual should be allowed entry to the workplace. Visitors may be asked to complete symptom screening before entering a Federal facility. In developing these tools, agencies may adapt the one developed by CDC.

Any individual, regardless of vaccination status, who develops any symptoms consistent with COVID-19 during the workday must immediately isolate, wear a mask (if the individual is not already doing so and one is available), notify their supervisor, and promptly leave the workplace. Agencies should have processes in place to provide advice and support to supervisors on any related reporting or human resources requirements.

Quarantine, Isolation, and Steps for Fully Vaccinated Individuals Following Exposure to Someone with Suspected or Confirmed COVID-19

Any individual with a suspected or confirmed case of COVID-19 will be advised to isolate, pursuant to CDC guidelines, and in compliance with State, local, and Tribal laws and regulations. Personnel who are not fully vaccinated and who have had a close contact with someone who has tested positive for COVID-19 should follow CDC and State, local, and Tribal guidance for quarantine.

Individuals who have been fully vaccinated and have had close contact with someone with suspected or confirmed COVID-19 should get tested 3-5 days after exposure, even if they do not have symptoms. They should also wear a mask indoors in public for 14 days following exposure or until their test result is negative. If their test result is positive, they should isolate for 10 days.

Confidentiality and Privacy

All medical information collected from individuals, including vaccination information, test results, and any other information obtained as a result of testing and symptom monitoring, will be treated in accordance with applicable laws and policies on confidentiality and privacy, and will be accessible only to those with a need to know. Agencies should consult their Senior Agency Officials for Privacy on matters related to the handling of personally identifiable information and identify a point of contact for all questions relating to personal medical information.

Workplace Operations

Occupancy

Agencies may establish occupancy limits for specific workplaces as a means of facilitating physical distancing. Note that by reducing the number of people in a space, occupancy limits also increase the heating, ventilation, and air conditioning delivery of outdoor air per person.

Environmental Cleaning

Agencies should ensure regular cleaning of common use, high-touch, and high-density spaces, such as lobbies, restrooms, elevators, and stairwells. Office space that is in regular use is to be cleaned regularly, and in accordance with CDC guidelines. Wipes and other Environmental Protection Agency-approved disinfectants will be made available for use by individuals to wipe down workstations and related personal property. Physical barriers, such as plexiglass shields, may be installed, where appropriate.

In the event of a suspected or confirmed case of COVID-19 in the workplace, agencies should ensure enhanced environmental cleaning of the spaces that the individual occupied or accessed in accordance with CDC and, where applicable, GSA guidance, which provides as follows:

- If fewer than 24 hours have passed since the person who is sick or diagnosed with COVID-19 has been in the space, clean and disinfect the space.
- If more than 24 hours have passed since the person who is sick or diagnosed with COVID-19 has been in the space, cleaning is enough. You may choose to also disinfect depending on certain conditions or everyday practices required by your facility.
- If more than 3 days have passed since the person who is sick or diagnosed with COVID-19 has been in the space, no additional cleaning (beyond regular cleaning practices) is needed.

If enhanced cleaning is required, wait as long as possible (at least several hours) before cleaning and disinfecting. Extended wait periods allow increased opportunity for viral deactivation to occur naturally, while also allowing time for aerosols to settle, prior to surface disinfection.

The agency's COVID-19 Coordination Team will determine the appropriate scope of workplace closures needed—in some cases, it may be a suite or individual offices or part of a floor, in other cases, it may include an entire building.

Hygiene

Hand sanitizer stations are to be available at the building entrance and throughout workspaces. Hand sanitizers should contain at least 60% alcohol and be manufactured in accordance with the requirements of the U.S. Food and Drug Administration (FDA). Ingredients should be listed on a "Drug Facts" label. Agencies should ensure the hand sanitizer is not on the FDA's do not use list.

Ventilation and Air Filtration

Modifications to ventilation systems should be considered in accordance with CDC guidance, especially as building population density increases. To the maximum extent feasible, indoor ventilation will be optimized to increase the proportion of outdoor air and improve filtration. Deployment of portable high-efficiency particulate air (HEPA) cleaners should be considered for higher-risk spaces (e.g., health clinics).

Collective Bargaining Obligations

Consistent with President Biden's policy to support collective bargaining, agencies are reminded to satisfy applicable collective bargaining obligations under 5 U.S.C. Chapter 71 when implementing workplace safety plans, including on a post-implementation basis where necessary. Agencies are also strongly encouraged to communicate regularly with employee representatives on workplace safety matters.

Frequently Asked Questions Related to Compliance with the Applicable Preliminary Nationwide Injunction on Implementation and Enforcement of the Vaccination Requirement Pursuant to Executive Order (E.O.) 14043

Guidance to Agencies as of January 24, 2022

To ensure compliance with an applicable preliminary nationwide injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to Executive Order 14043 on Requiring Coronavirus Disease 2019 Vaccination for Federal Employees. Safer Federal Workforce Task Force guidance on other Federal agency safety protocols based on vaccination status—including guidance on protocols related to masking, distancing, travel, testing, and quarantine—remains in effect.

Below are answers to frequently asked questions as guidance for agencies related to compliance with the nationwide injunction.

Maintenance and Use of Vaccination Information and Documentation

Q: Can agencies continue to require and receive submission of vaccination information and documentation (including proof of primary series vaccination, additional doses, and booster shots) from employees and potential employees who have received an offer of employment, and maintain, review, and use that information and documentation for the purposes of implementing safety protocols based on vaccination status such as masking, distancing, testing, travel, and quarantine?

A: Yes, agencies can continue to require and receive submission of vaccination information and documentation (including proof of primary series vaccination, additional doses, and booster shots) from employees and potential employees who have received an offer of employment, and maintain, review, and use that information and documentation for the purposes of implementing safety protocols based on vaccination status such as masking, distancing, testing, travel, and quarantine. This includes reviewing vaccination documentation and information that was submitted to the agency during implementation of E.O. 14043 prior to issuance of the injunction, for the purposes of using that information to implement other safety protocols that are based on vaccination status. If an employee does not submit their vaccination information and documentation, they should be treated as not fully vaccinated for the purposes of implementing safety protocols that are based on vaccination status.

Job Posting Announcements and Hiring Actions

Q: Should agencies modify existing job postings that note there is a vaccination requirement for Federal employment pursuant to E.O. 14043?

A: Agencies should conspicuously note on Federal websites where they post job opportunity announcements that the vaccination requirement for Federal employees pursuant to E.O. 14043 is currently not being implemented and enforced. Agencies can use the following as a template for banners or similar posts on such Federal websites with job opportunity announcements:

“To ensure compliance with an applicable preliminary nationwide injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement

pursuant to Executive Order 14043 on Requiring Coronavirus Disease 2019 Vaccination for Federal Employees. Therefore, to the extent a Federal job announcement includes the requirement that applicants must be fully vaccinated against COVID-19 pursuant to Executive Order 14043, that requirement does not currently apply. Federal agencies may request information regarding the vaccination status of selected applicants for the purposes of implementing other workplace safety protocols, such as protocols related to masking, physical distancing, testing, travel, and quarantine.”

If an agency is not able to conspicuously post such a general notice where job opportunity announcements are posted, the agency should instead modify the existing individual job opportunity announcements to remove reference to vaccination requirements pursuant to E.O. 14043 or add a notice consistent with the template notice above.

Agencies should not add reference to a vaccination requirement pursuant to E.O. 14043 in new job opportunity announcements while the nationwide injunction is in place. Agencies are encouraged to provide notice to job applicants that the agency will request information regarding the vaccination status of applicants for the purposes of implementing other workplace safety protocols, such as protocols related to masking, physical distancing, testing, travel, and quarantine.

Q: Should agencies that have issued tentative and final offers of employment that reference the vaccination requirement pursuant to E.O. 14043 re-issue revised letters?

A: Yes, agencies should reissue tentative and final offers of employment to modify the reference to the COVID-19 vaccination requirement pursuant to E.O. 14043. Agencies can use the following as a template for language in such letters:

“To ensure compliance with an applicable preliminary nationwide injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to Executive Order 14043 on Requiring Coronavirus Disease 2019 Vaccination for Federal Employees. Federal agencies may request information regarding the vaccination status of selected applicants for the purposes of implementing other workplace safety protocols, such as protocols related to masking, physical distancing, testing, travel, and quarantine.”

Exception Requests

Q: Can agencies continue to process requests for disability or religious exceptions to the COVID-19 vaccination requirement pursuant to E.O. 14043 while the applicable preliminary nationwide injunction is in place?

A: No, agencies should not continue to process requests they have already received for disability or religious exceptions to the COVID-19 vaccination requirement pursuant to E.O. 14043. They also should not ask employees for additional information that may be required to process previously submitted exception requests, or take any other steps related to adjudication of exception requests.

Agencies also should notify employees with pending exception requests that implementation or enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 is currently enjoined and that an exception therefore is not necessary so long as the nationwide injunction is in place.

If an agency receives a request for an exception from the COVID-19 vaccination requirement pursuant to E.O. 14043, the agency should accept the request, hold it in abeyance, and notify the employee who submitted the request that implementation or enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 is currently enjoined and that an exception therefore is not necessary so long as the nationwide injunction is in place.

Enforcement Actions

Q: Can agencies continue to undertake preparatory work associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 while the applicable preliminary nationwide injunction is in place?

A: No, agencies should not continue to undertake preparatory work, such as drafting enforcement templates concerning disciplinary or adverse actions, associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043.

Q: What should agencies do regarding disciplinary actions already in progress associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 while the applicable preliminary nationwide injunction is in place?

A: Agencies should hold in abeyance all disciplinary actions related to enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043. This includes temporarily halting active suspensions as of January 21, 2022, and holding proposals to suspend or terminate non-compliant employees in abeyance.

Agencies should inform all employees who are subject to proposed or active disciplinary action that the implementation or enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 is currently enjoined and that the disciplinary action is being held in abeyance so long as the nationwide injunction is in place.

Q: Can agencies take disciplinary action to enforce other COVID-19 workplace safety protocols?

A: Agencies should continue processing disciplinary actions for other performance or compliance issues unrelated to enforcement of the vaccination requirement pursuant to E.O. 14043. This includes, for example, taking disciplinary actions associated with failure to comply with other COVID-19 workplace safety protocols, such as masking, physical distancing, or testing.

Q: Do disciplinary actions associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 that were already completed prior to the nationwide injunction need to be repealed, revoked, or rescinded?

A: No, at this time agencies do not need to revoke or rescind disciplinary actions associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 that were already effectuated prior to the nationwide injunction. For example, agencies do not need to repeal, rescind, or revoke letters of education and counseling, letters of reprimand, or proposals of suspensions, which may be stored in employee Official Personnel Folders or other agency files. In addition, agencies do not need to reinstate employees who have been terminated because of non-compliance with the COVID-19

vaccination requirement pursuant to E.O. 14043. Agencies should temporarily halt any active suspensions as of January 21, 2022, and should restore those employees to pay status.

Agencies should not use prior disciplinary actions taken pursuant to E.O. 14043 as predicates for further discipline.

Other Vaccination Requirements

Q: Can agencies with COVID-19 vaccination requirements unrelated to E.O. 14043 and pursuant to other authorities continue to implement and enforce those requirements?

A: Yes, agencies with COVID-19 vaccination requirements unrelated to E.O. 14043 and pursuant to other authorities can continue to implement and enforce those requirements. This includes proceeding with receiving, reviewing, and processing requests for exception to those requirements and enforcing the requirements through disciplinary actions consistent with agency policies.

Safer Federal Workforce Task Force
**Initial Implementation Guidance for Federal Agencies
on COVID-19 Community Levels and Mask-Wearing**

Purpose

On February 25, 2022, the Centers for Disease Control and Prevention (CDC) set recommendations related to [COVID-19 Community Levels](#), which measure the impact of COVID-19 illness on health and healthcare systems. Layered prevention strategies—like staying up to date on vaccines, screening testing, ventilation, and wearing masks—can help limit severe disease and reduce the potential for strain on the healthcare system.

Pursuant to Executive Order 13991, Federal agencies follow CDC guidelines for mask-wearing and other public health measures. This document provides Federal agencies with initial implementation guidance they should follow in utilizing the CDC’s COVID-19 Community Levels to determine the appropriate mask-wearing and screening testing requirements for each Federal facility at a given time. Further Safer Federal Workforce Task Force guidance will address the intersection of COVID-19 Community Levels with other workplace safety protocols for Federal agencies.

CDC notes that some settings, such as high-risk congregate settings, might include additional layers of prevention. In addition, recommendations based on COVID-19 Community Levels may not apply in healthcare settings, which should follow relevant regulations and guidance.

Agencies should implement the mask-wearing and screening testing protocols set forth in this guidance as soon as operationally feasible and no later than Friday, March 4, 2022.

Federal Agency Protocols for Mask-Wearing and Screening Testing Based on COVID-19 Community Levels

CDC has provided [county-level data](#) showing the COVID-19 Community Level for each county in the United States. For Federal facilities in the United States, agencies should utilize that data in determining the COVID-19 Community Level for a given facility by looking to the COVID-19 Community Level for the county in which the facility is located. Where a locality imposes more protective pandemic-related safety requirements, those requirements should be followed in Federal facilities within that locality.

Federal agency masking and screening testing protocols based on COVID-19 Community Levels	
When the COVID-19 Community Level is LOW in the county where a Federal facility is located	• Mask-Wearing: Agencies do not need to require individuals to wear masks in that Federal facility, regardless of vaccination status. • Screening Testing: Agencies do not need to utilize their screening testing program in that Federal facility.
When the COVID-19 Community Level is MEDIUM in the county where a Federal facility is located	• Mask-Wearing: Agencies do not need to require individuals to wear masks in that Federal facility, regardless of vaccination status. • Screening Testing: Agencies should utilize their screening testing programs in that Federal facility, consistent with the protocols the agency has established for screening testing that align with guidance from the Safer Federal Workforce Task Force.

Federal agency masking and screening testing protocols based on COVID-19 Community Levels	
When the COVID-19 Community Level is HIGH in the county where a Federal facility is located	• Mask-Wearing: Agencies should require individuals to wear masks in that Federal facility, regardless of vaccination status and consistent with CDC and Task Force guidance on mask-wearing. • Screening Testing: Agencies should utilize their screening testing program in that Federal facility, consistent with the protocols the agency has established for screening testing that align with guidance from the Safer Federal Workforce Task Force.

As noted above, further Task Force guidance will address the intersection of [COVID-19 Community Levels](#) with other workplace safety protocols for Federal agencies. At this time, agencies should follow existing Task Force guidance with respect to other COVID-19 workplace protocols.

Further Considerations for Mask-Wearing

Agencies should ensure that individuals can wear a mask if they choose regardless of COVID-19 Community Level and consistent with agency protocols. When the COVID-19 Community Level is HIGH, agencies should require all individuals to wear masks in Federal facilities, regardless of vaccination status.

Consistent with CDC recommendations and Safer Federal Workforce Task Force [guidance](#) for quarantine and isolation, people with symptoms, a positive test, or exposure to someone with COVID-19 should wear a mask for the required period of time.

Determining COVID-19 Community Level for Federal Facilities

As noted above, CDC has provided [county-level data](#) showing the COVID-19 Community Level for each county in the United States. Agencies should utilize that data in determining the COVID-19 Community Level for a given facility by looking to the COVID-19 Community Level for the county in which the facility is located.

Agencies should review the COVID-19 Community Level for each of their facilities on a weekly basis, to determine any changes that need to be made to agency COVID-19 workplace safety protocols for the upcoming week; for example, an agency could review the COVID-19 Community Level each Friday and implement any changes to agency safety protocols due to changes in the COVID-19 Community Level starting the following Monday.

If agencies have implementation challenges or unique operational circumstances that may require other or additional prevention measures, please reach out to the Safer Federal Workforce Task Force for consultation, consistent with existing processes for determining necessary exceptions to COVID-19 workplace safety protocols.

Frequently Asked Questions Related to Compliance with the Applicable Preliminary Nationwide Injunction on Implementation and Enforcement of the Vaccination Requirement Pursuant to Executive Order 14043

Guidance to agencies originally issued January 24, 2022 and updated August 17, 2022

To ensure compliance with an applicable preliminary nationwide injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to Executive Order (E.O.) 14043 on Requiring Coronavirus Disease 2019 Vaccination for Federal Employees. Safer Federal Workforce Task Force guidance on other Federal agency safety protocols remains in effect.

Below are answers to frequently asked questions as guidance for agencies related to compliance with the nationwide injunction.

Maintenance and Use of Vaccination Information and Documentation

Q: Can agencies continue to require, request, and collect submission of vaccination information and documentation (including proof of primary series vaccination, additional doses, and booster shots) from employees and potential employees who have received an offer of employment, and maintain, review, and use that information and documentation?

A: As soon as possible and no later than Monday, August 22, 2022, to be consistent with Task Force guidance, agencies should pause requiring or requesting employees and potential employees to provide information about their COVID-19 vaccination status regardless of COVID-19 Community Levels, where COVID-19 safety protocols do not vary based on vaccination status.

Consistent with CDC guidance, for most Federal workplaces, COVID-19 workplace safety protocols will not vary based on vaccination status or otherwise depend on vaccination information. Where this is the case, agencies should no longer request or collect vaccination status information.

Agencies with employee COVID-19 vaccination requirements unrelated to E.O. 14043 and pursuant to other authorities can continue to require documentation of proof of vaccination from employees and potential employees subject to those requirements, as can agencies with other setting-specific dependencies on collecting vaccination information from employees in those settings. Agencies in these positions should consult with the Task Force, the agency's General Counsel, and the agency's Senior Agency Official for Privacy.

When agencies pause requiring, requesting, and collecting vaccination status information, such agencies must continue to preserve their vaccination information collection systems and the information collected to date from employees in accordance with National Archives and Records Administration records schedules; COVID-19 workplace safety may change in the future, or collection of this information from Federal employees may otherwise need to resume.

Job Posting Announcements and Hiring Actions

Q: Should agencies modify existing job postings that note there is a vaccination requirement for Federal employment pursuant to E.O. 14043?

A: Agencies should conspicuously note on Federal websites where they post job opportunity announcements that the vaccination requirement for Federal employees pursuant to E.O. 14043 is currently not being implemented and enforced. Agencies can use the following as a template for banners or similar posts on such Federal websites with job opportunity announcements:

“To ensure compliance with an applicable preliminary nationwide injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to Executive Order 14043 on Requiring Coronavirus Disease 2019 Vaccination for Federal Employees. Therefore, to the extent a Federal job announcement includes the requirement that applicants must be fully vaccinated against COVID-19 pursuant to Executive Order 14043, that requirement does not currently apply.”

If an agency is not able to conspicuously post such a general notice where job opportunity announcements are posted, the agency should instead modify the existing individual job opportunity announcements to remove reference to vaccination requirements pursuant to E.O. 14043 or add a notice consistent with the template notice above.

Agencies should not add reference to a vaccination requirement pursuant to E.O. 14043 in new job opportunity announcements while the nationwide injunction is in place.

Q: Should agencies that have issued tentative and final offers of employment that reference the vaccination requirement pursuant to E.O. 14043 re-issue revised letters?

A: Yes, agencies should reissue tentative and final offers of employment to modify the reference to the COVID-19 vaccination requirement pursuant to E.O. 14043. Agencies can use the following as a template for language in such letters:

“To ensure compliance with an applicable preliminary nationwide injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to Executive Order 14043 on Requiring Coronavirus Disease 2019 Vaccination for Federal Employees.”

Exception Requests

Q: Can agencies process requests for disability or religious exceptions to the COVID-19 vaccination requirement pursuant to E.O. 14043 while the applicable preliminary nationwide injunction is in place?

A: No, agencies should not process requests they have already received for disability or religious exceptions to the COVID-19 vaccination requirement pursuant to E.O. 14043. They also should not ask

employees for additional information that may be required to process previously submitted exception requests, nor take any other steps related to adjudication of exception requests.

Agencies also should notify employees with pending exception requests that implementation or enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 is currently enjoined and that an exception therefore is not necessary so long as the nationwide injunction is in place.

If an agency receives a request for an exception from the COVID-19 vaccination requirement pursuant to E.O. 14043, the agency should accept the request, hold it in abeyance, and notify the employee who submitted the request that implementation or enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 is currently enjoined and that an exception therefore is not necessary so long as the nationwide injunction is in place.

Q: Can agencies renew, revise, or extend Paperwork Reduction Act clearance of their E.O. 14043 exception request forms while the applicable preliminary nationwide injunction is in effect?

A: No. The injunction prevents agencies from taking any action to implement or enforce the COVID-19 vaccination requirement pursuant to E.O. 14043, including actions to process requests for disability or religious exceptions. Accordingly, agencies should not seek, and OMB will not approve, renewals, revisions, or extensions for a clearance under the Paperwork Reduction Act (PRA) of E.O. 14043 exception request forms while the applicable preliminary nationwide injunction is in effect.

If an agency's PRA clearance for an E.O. 14043 exception request form expires during the applicable preliminary nationwide injunction, agencies should no longer have employees who want to submit an exception request fill out the expired form. However, as previously advised, agencies should continue to accept any request for an exception (even if informally made) and hold it in abeyance during the pendency of the injunction. If the injunction is lifted, agencies may then seek renewed clearance of their exception request form and, upon receiving such clearance, ask employees with pending exception requests to provide any further information that is needed.

Enforcement Actions

Q: Can agencies undertake preparatory work associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 while the applicable preliminary nationwide injunction is in place?

A: No, agencies should not undertake preparatory work, such as drafting enforcement templates concerning disciplinary or adverse actions, associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043.

Q: What should agencies do regarding disciplinary actions already in progress associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 while the applicable preliminary nationwide injunction is in place?

A: Agencies should hold in abeyance all disciplinary actions related to enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043. This includes temporarily halting active suspensions as of January 21, 2022, and holding proposals to suspend or terminate non-compliant employees in abeyance.

Agencies should inform all employees who are subject to proposed or active disciplinary action that the implementation or enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 is currently enjoined and that the disciplinary action is being held in abeyance so long as the nationwide injunction is in place.

Q: Can agencies take disciplinary action to enforce other COVID-19 workplace safety protocols?

A: Agencies should continue processing disciplinary actions for other performance or compliance issues unrelated to enforcement of the vaccination requirement pursuant to E.O. 14043. This includes, for example, taking disciplinary actions associated with failure to comply with other COVID-19 workplace safety protocols.

Q: Do disciplinary actions associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 that were already completed prior to the nationwide injunction need to be repealed, revoked, or rescinded?

A: No, at this time agencies do not need to revoke or rescind disciplinary actions associated with enforcement of the COVID-19 vaccination requirement pursuant to E.O. 14043 that were already effectuated prior to the nationwide injunction. For example, agencies do not need to repeal, rescind, or revoke letters of education and counseling, letters of reprimand, or proposals of suspensions, which may be stored in employee Official Personnel Folders or other agency files. In addition, agencies do not need to reinstate employees who have been terminated because of non-compliance with the COVID-19 vaccination requirement pursuant to E.O. 14043. Agencies should temporarily halt any active suspensions as of January 21, 2022, and should restore those employees to pay status.

Agencies should not use prior disciplinary actions taken pursuant to E.O. 14043 as predicates for further discipline.

Other Vaccination Requirements

Q: Can agencies with COVID-19 vaccination requirements unrelated to E.O. 14043 and pursuant to other authorities continue to implement and enforce those requirements?

A: Yes, agencies with COVID-19 vaccination requirements unrelated to E.O. 14043 and pursuant to other authorities can continue to implement and enforce those requirements. This includes proceeding with receiving, reviewing, and processing requests for exception to those requirements and enforcing the requirements through disciplinary actions consistent with agency policies.

Safer Federal Workforce Task Force
Model Agency COVID-19 Safety Principles
Last Updated September 15, 2022¹

UPDATES IN THIS VERSION

- To ensure compliance with an applicable nationwide preliminary injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to Executive Order (E.O.) [14043](#) on *Requiring Coronavirus Disease 2019 Vaccination for Federal Employees*. [Guidance](#) has been provided to agencies on complying with the applicable nationwide injunction. Any aspects of these Model Agency COVID-19 Safety Principles related to the vaccination requirement pursuant to E.O. 14043 are not in effect and will not be implemented or enforced by agencies while the injunction is in place. Safer Federal Workforce Task Force (Task Force) guidance on other Federal agency safety protocols remains in effect, including the protocols described in this document.
- Consistent with CDC guidance, for most Federal workplaces, COVID-19 workplace safety protocols will not vary based on vaccination status or otherwise depend on vaccination information. Where this is the case, agencies should pause requiring, requesting, or collecting vaccination status information from employees, contractor employees, and visitors.
- The Centers for Disease Control and Prevention (CDC) has set recommendations related to [COVID-19 Community Levels](#), which measure the impact of COVID-19 illness on health and healthcare systems. Task Force guidance relies on CDC COVID-19 Community Levels county-level data to determine the appropriate prevention strategies to utilize at a given time, including with respect to requiring mask-wearing, encouraging consideration of physical distancing, avoiding crowding, and implementing screening testing for high-risk settings. In addition to guidance for agencies on monitoring COVID-19 Community Levels on a weekly basis, a chart providing an overview of Federal facility safety protocols by COVID-19 Community Level is below.
- Protocols have been updated consistent with CDC guidance for mask-wearing, physical distancing, screening testing, travel, post-exposure precautions, and isolation.
- For agency-hosted meetings, events, and conferences, there are no Government-wide restrictions, and agencies do not need to first seek approval of agency heads, regardless of the expected number of in-person participants or local COVID-19 Community Levels, unless otherwise required to do so by agency policy.

PURPOSE

The health and safety of all Federal employees, onsite contractor employees, and individuals interacting with the Federal workforce is of paramount concern for the Administration.

Section 2(a) of E.O. [13991](#) directs executive departments and agencies (hereafter, “agency” and collectively, “agencies”) to “immediately take action, as appropriate and consistent with applicable law, to require compliance with CDC guidelines with respect to wearing masks, maintaining physical distance, and other public health measures by: on-duty or on-site Federal employees; on-site Federal contractors;

¹ Previous updates to these model agency COVID-19 safety principles were issued on [September 13, 2021](#) and [July 29, 2021](#). The original version of model agency COVID-19 safety principles was issued as an attachment to Office of Management and Budget memorandum [M-21-15](#) on “COVID-19 Safe Federal Workplace: Agency Model Safety Principles” issued on January 24, 2021.

and all persons in Federal buildings or on Federal lands.” Section 4 of E.O. 13991 establishes the Task Force and directs it to “provide ongoing guidance to heads of agencies on the operation of the Federal Government, the safety of its employees, and the continuity of Government functions during the COVID-19 pandemic.”

The purpose of this document from the Task Force is to provide updated model COVID-19 safety principles for agencies with respect to their agency COVID-19 workplace safety plans. These updated model COVID-19 safety principles set forth the protocols agencies must follow to comply with their obligations under section 2(a) of E.O. 13991, as well as protocols agencies would need to follow to implement Task Force guidance issued pursuant to E.O. 13991.

To be consistent with Task Force guidance, agencies would need to incorporate these model COVID-19 safety principles into their existing agency COVID-19 workplace safety plans and ensure the agency’s updated COVID-19 workplace safety plan is posted on a publicly available website, following consultation with the Task Force.

ROLE OF AGENCY COVID-19 COORDINATION TEAMS

To be consistent with this guidance and OMB Memorandum [M-21-15](#), each agency would need to maintain its COVID-19 Coordination Team. This team should, at a minimum, include a representative from: each component agency (if applicable); the appropriate human resources office(s); occupational safety and health experts; executive leadership; and legal counsel. The COVID-19 Coordination Team should include or consult with as needed the agency’s Senior Agency Official for Privacy. The team should meet regularly to: review compliance with agency COVID-19 workplace safety plans, protocols, and policies; consider and—following consultation with the Task Force—implement potential revisions to agency COVID-19 workplace safety plans, protocols, and policies consistent with Task Force and CDC guidance; ensure agency COVID-19 workplace safety plans, protocols, and policies are broadly communicated to agency employees and, as appropriate, onsite contractor employees, visitors to agency facilities, and in-person attendees at agency-hosted meetings, events, and conferences; and evaluate any other operational needs related to COVID-19 workplace safety. The team should coordinate all decisions with Facility Security Committees, as appropriate. For privately owned facilities leased by the General Services Administration (GSA), the team should coordinate with GSA, where appropriate, and the lessor’s designated representative.

MODEL AGENCY COVID-19 SAFETY PRINCIPLES

The model agency COVID-19 safety principles presented here are aligned with the latest COVID-19 guidance from the CDC for the general community. These principles will be reassessed over time, as conditions warrant and as CDC guidance—as well as relevant guidance from other Federal agencies such as the Department of Labor Occupational Health and Safety Administration (OSHA)—is updated.

COVID-19 Community Levels

*Frequently asked questions (FAQs) regarding **local conditions** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

CDC has set recommendations related to [COVID-19 Community Levels](#), which measure the impact of COVID-19 illness on health and healthcare systems and inform the appropriate prevention strategies to utilize at a given time.

CDC provides county-level data showing the COVID-19 Community Level for each county in the United States, as determined by CDC. Agencies should utilize that data in determining the COVID-19 Community Level for a given facility by looking to the COVID-19 Community Level for the county in which the facility is located.

Agencies should review the COVID-19 Community Level for each of their facilities on a weekly basis, to determine any changes that should be made to agency COVID-19 workplace safety protocols for the upcoming week; for example, an agency could review the COVID-19 Community Level each Friday and implement any changes to agency safety protocols due to changes in the COVID-19 Community Level starting the following Monday.²

Overview of Federal Facility COVID-19 Safety Protocols by COVID-19 Community Level

Federal Facility COVID-19 Safety Protocols	When COVID-19 Community Level is LOW	When COVID-19 Community Level is MEDIUM	When COVID-19 Community Level is HIGH
Federal employee vaccination requirement pursuant to E.O. 14043	No implementation or enforcement given a nationwide injunction ³	No implementation or enforcement given a nationwide injunction ³	No implementation or enforcement given a nationwide injunction ³
To be consistent with Task Force guidance, agencies would need to require documentation of vaccination status from employees, and ask about the vaccination status of onsite contractor employees and visitors .	Pause, given that COVID-19 safety protocols do not vary by vaccination status at this time ⁴	Pause, given that COVID-19 safety protocols do not vary by vaccination status at this time ⁴	Pause, given that COVID-19 safety protocols do not vary by vaccination status at this time ⁴
Agencies must require all individuals to wear a high-quality mask or respirator (such as an N95) regardless of vaccination status.	NO ⁵ (mask-wearing optional)	NO ⁵ (mask-wearing optional)	YES
Where agencies have established serial screening testing programs and/or point-in-time screening testing requirements for certain agency-identified high-risk settings , ⁶ screening testing must be implemented for individuals enrolled in the program or subject to the requirement, regardless of vaccination status.	NO	YES	YES
To be consistent with Task Force guidance, agencies would need to require symptom screening self-checks for all individuals prior to entry to Federal facilities.	YES	YES	YES

² See also: [Updated Implementation Guidance on COVID-19 Community Levels | Safer Federal Workforce Task Force](#), Updated August 17, 2022

³ See [Frequently Asked Questions Related to Compliance with the Applicable Preliminary Nationwide Injunction on Implementation and Enforcement of the Vaccination Requirement Pursuant to Executive Order \(E.O.\) 14043 | Safer Federal Workforce Task Force](#), Updated August 17, 2022

⁴ Agencies with employee COVID-19 vaccination requirements unrelated to E.O. 14043 and pursuant to other authorities can continue to require documentation of proof of vaccination from employees subject to those requirements, as can agencies with other setting-specific dependencies on collecting vaccination information from employees in those settings, in consultation with the Task Force, the agency's General Counsel, and the agency's Senior Agency Official for Privacy.

⁵ Agencies may need to require individuals to wear masks in certain Federal facilities or workplaces, or otherwise when Federal employees are on duty in certain settings, to be consistent with CDC guidance and other regulations.

⁶ For the purposes of this guidance, high-risk settings include certain Federal facilities—or certain specific settings within Federal facilities—where (1) COVID-19 transmission risk is high, and (2) the population present onsite is at [high risk of severe outcomes from COVID-19](#) or there is limited access to healthcare. Examples of such settings provided by CDC include, “High-risk congregate settings, such as assisted living facilities, correctional facilities, and homeless shelters, that have demonstrated high potential for rapid and widespread virus transmission to people at high risk for severe illness” and “Settings that involve close quarters and that are isolated from healthcare resources (e.g., fishing vessels, wildland firefighter camps, or offshore oil platforms).”

Federal Facility COVID-19 Safety Protocols	When COVID-19 Community Level is LOW	When COVID-19 Community Level is MEDIUM	When COVID-19 Community Level is HIGH
Agencies must instruct all individuals known to be exposed to COVID-19 to wear a high-quality mask or respirator (such as an N95), take other post-exposure precautions, and watch for symptoms for 10 full days after exposure , consistent with CDC guidance—instead of at-home quarantine and regardless of vaccination status. Agencies must require individuals exposed to COVID-19 be tested at least 5 full days (ideally, on or after day 6) after their last exposure .	YES	YES	YES
Agencies must instruct all individuals with probable or confirmed COVID-19 to follow agency isolation protocols and take other precautions consistent with CDC guidance.	YES	YES	YES
To be consistent with Task Force guidance, agencies would need to make and maintain improvements to indoor ventilation and air filtration to the maximum extent feasible .	YES	YES	YES
To be consistent with Task Force guidance, agencies would need to post signage encouraging individuals, regardless of vaccination status, to consider physically distancing themselves from others and avoiding crowding in indoor common areas, meeting rooms, and high-risk settings in Federal facilities. ⁶	NO	YES	YES

Vaccination

*FAQs regarding **vaccination** can be found on SaferFederalWorkforce.gov [here](#).*

Vaccination Requirements

NOTE: To ensure compliance with an applicable nationwide preliminary injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to E.O. 14043 on *Requiring Coronavirus Disease 2019 Vaccination for Federal Employees*. [Guidance](#) has been provided to agencies on complying with the applicable nationwide injunction. The vaccination requirement set forth in this “Vaccination Requirements” section pursuant to E.O. 14043 is not in effect and will not be implemented or enforced by agencies while the injunction is in place. Federal employees may be subject to COVID-19 vaccination requirements pursuant to agency authorities and must follow agency policies with respect to those requirements.

To ensure the safety of the Federal workforce, Federal employees must be fully vaccinated, except in limited circumstances in which an employee is legally entitled to a reasonable accommodation.

Vaccination-Related Leave

*FAQs regarding **vaccination-related leave** can be found on SaferFederalWorkforce.gov [here](#).*

NOTE: Employees who seek any non-required dose of FDA-authorized COVID-19 vaccine during work hours should be granted administrative leave and not use duty time. This includes employees who are not required to be vaccinated due to the nationwide preliminary injunction on implementation and enforcement of E.O. 14043. For those employees who are required to be vaccinated against COVID-19 by their agency pursuant to agency-specific vaccination requirements, time spent receiving any required authorized COVID-19 vaccine dose must be duty time.

When a Federal employee is required to be vaccinated, the time the employee spends obtaining any required COVID-19 vaccine dose (including travel time) is duty time; thus, there is no need for the employee to take administrative leave for such time during the employee's basic tour of duty.

Employees may not be credited with administrative leave for time spent getting a required vaccine dose. If, due to unforeseen circumstances, the employee is unable to obtain the vaccine dose during basic tour of duty hours, the normal overtime hours of work rules apply.

To be consistent with Task Force guidance, agencies would need to provide employees with administrative leave to receive any non-required dose of FDA-authorized COVID-19 vaccine.

To be consistent with Task Force guidance, agencies would need to provide employees with administrative leave to address any side effects related to a recent vaccination. In addition, agencies would need to provide employees with administrative leave to accompany a family member being vaccinated. For this purpose, a "family member" is an individual who meets the definition of that term in Office of Personnel Management (OPM) leave regulations (see 5 CFR 630.201).

See Task Force FAQs on [vaccination-related leave](#) for more information about the use of duty time and administrative leave, including how much duty time or administrative leave agencies should provide for the above circumstances.

Vaccination Documentation and Information

FAQs regarding **vaccination documentation and information** can be found on SaferFederalWorkforce.gov [here](#).

FAQs regarding **contractors** can be found on SaferFederalWorkforce.gov [here](#).

FAQs regarding **visitors** can be found on SaferFederalWorkforce.gov [here](#).

NOTE: Agencies should take no action to require or request employees and potential employees to provide information about their COVID-19 vaccination status solely for purposes of implementing the vaccination requirement pursuant to E.O. 14043, due to the nationwide preliminary injunction on implementation and enforcement of E.O. 14043.

Consistent with CDC guidance, for most Federal workplaces, COVID-19 workplace safety protocols currently do not vary based on vaccination status or otherwise depend on vaccination information. Where this is the case, agencies should pause any efforts to require, request, or collect vaccination status information from any individual—including employees, contractor employees, visitors to agency facilities, or in-person attendees at agency-hosted meetings, events, and conferences—for the purposes of implementing agency COVID-19 workplace safety protocols.⁷

When agencies pause requiring, requesting, and collecting vaccination status information, such agencies must continue to preserve their vaccination information collection systems and the information collected to date from employees in accordance with the Federal Records Act and other records requirements. Furthermore, it is important to preserve this information as COVID-19 workplace safety protocols may change in the future, or collection of this information from Federal employees may

⁷ Agencies with employee COVID-19 vaccination requirements pursuant to authorities other than E.O. 14043 may continue to require documentation of proof of vaccination from employees and potential employees subject to those requirements, as can agencies with other setting-specific dependencies on collecting vaccination information from employees in those settings. Such agencies should consult with the Task Force, the agency's General Counsel, and the agency's Senior Agency Official for Privacy on such requirements, including related to information collection.

otherwise need to resume. See Task Force FAQs on [vaccination documentation and information](#) for more information about how agencies should maintain any documentation provided by employees regarding vaccination.

Mask-Wearing

*FAQs regarding **mask-wearing** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

When the COVID-19 Community Level is HIGH in a county where a Federal facility is located, pursuant to E.O. 13991 and consistent with CDC guidance, agencies must require individuals—including employees, contractor employees, and visitors—who are 2 years or older, to wear a high-quality mask indoors in the facility, regardless of their vaccination status. This includes when Federal employees are interacting with members of the public as part of their official responsibilities.

Nothing in CDC or Task Force guidance precludes an individual from wearing a mask, if the individual so chooses when the COVID-19 Community Level is LOW or MEDIUM. When the COVID-19 Community Level is LOW or MEDIUM in a county where a Federal facility is located, in most settings, to be consistent with Task Force guidance, agencies would need to communicate to individuals, such as through signage, that mask-wearing is optional, and should not otherwise require individuals to wear a mask, except where required by Federal, State, Tribal, territorial, or local laws, rules, regulations, or existing collective bargaining agreements. Should an agency identify unique operational circumstances in certain agency workplaces that may require other or additional prevention measures, it should consult with the Task Force regarding exceptions, per the Exceptions section below.

When agencies require that individuals wear a “high-quality” [mask or respirator](#) when COVID-19 Community Levels are HIGH, and when agencies instruct individuals to wear a “high-quality” mask or respirator for post-exposure and post-isolation precautions, to be consistent with Task Force guidance, agencies would need to inform individuals that high-quality masks or respirators include respirators that meet U.S. or international standards (e.g., N95, KN95, KF94), masks that meet a standard (e.g., ASTM), or “procedure” or “surgical”-style masks. Agencies should otherwise avoid limiting the types of masks that can be worn by individuals in Federal facilities.

When individuals are required to wear a high-quality mask or respirator (such as an N95) in Federal facilities, agency mask-wearing protocols should reflect that:

- Masks and respirators should be well-fitting and worn consistently and correctly (over mouth and nose).
- Masks or respirators should be worn in any common areas or shared workspaces (including open floorplan office space, cubicle embankments, and conference rooms).
- Individuals do not need to wear masks or respirators when outdoors.

Agencies may provide for limited exceptions to mask-wearing, such as when an individual is alone in an office with floor to ceiling walls and a closed door, or for a limited time when an individual is eating or drinking and maintaining distance from others.

Masked individuals may be asked to lower their masks briefly for identification purposes in compliance with agency safety and security requirements.

Signage and Online Notice of Mask-Wearing Requirements

To be consistent with Task Force guidance, agencies would need to post and update physical signs and post information online on agency websites making clear what mask-wearing requirements apply in each Federal facility.

When the COVID-19 Community Level is HIGH in a county where a Federal facility is located, to be consistent with Task Force guidance, agencies would need to post physical signs providing notice of the requirement for all individuals to wear a high-quality mask or respirator (such as N95) indoors in the facility pursuant to E.O. 13991.

When the COVID-19 Community Level is LOW or MEDIUM in a county where a Federal facility is located, to be consistent with Task Force guidance, agencies would need to post physical signs providing notice that mask-wearing is optional.

Screening Testing

FAQs regarding **testing** can be found on [SaferFederalWorkforce.gov](https://www.saferfederalworkforce.gov) [here](#).

To be consistent with Task Force guidance, agencies should not implement COVID-19 serial or point-in-time screening testing⁸ in other Federal facilities, or for other settings, roles, and functions within Federal facilities, beyond those identified by agencies for high-risk settings, as described below, absent an approved exception from the agency head following consultation with the agency COVID-19 Coordination Team, including the agency Office of General Counsel, and the Task Force.

Serial Screening Testing

Following consultation with the agency COVID-19 Coordination Team, including the agency Office of General Counsel, and the Task Force, agencies may establish COVID-19 serial screening testing programs for employees (or employees and onsite contractor employees) working in high-risk settings within Federal facilities.⁹ When an agency has identified potential high-risk settings across its facilities, the agency should consult with the Task Force to confirm that those settings are high-risk and that establishing a serial screening testing program and/or requiring point-in-time screening testing in those facilities would be consistent with CDC and Task Force guidance, and should consult with the agency Office of General Counsel on any implementation. When serial screening testing is implemented, agencies must not differentiate among individuals on the basis of their vaccination status, pursuant to E.O. 13991 and consistent with CDC guidance.

⁸ [Screening testing](#) is intended to identify people with COVID-19 who are asymptomatic or do not have any known, suspected, or reported exposure to SARS-CoV-2, the virus that causes COVID-19. CDC [guidance](#) states that, "Screening testing can provide important information to limit transmission and outbreaks in high-risk congregate settings." Screening testing helps to identify unknown cases so that measures can be taken to prevent further transmission. Screening testing is separate and distinct from diagnostic testing, which is intended to identify current infection in individuals and is performed when a person has signs or symptoms consistent with COVID-19, or is asymptomatic, but has recent known or suspected exposure to someone with suspected or confirmed SARS-CoV-2 infection. Examples of screening testing include: (1) [Point-in-time screening testing](#): This is screening testing that happens on a situational basis, such as before an event or visit; and (2) [Serial screening testing](#): This is screening testing that is repeated at different points in time within a group, such as periodic testing for everyone in a particular setting or facility.

⁹ To be consistent with Task Force guidance, agencies should not implement COVID-19 serial screening testing in other Federal facilities, or for other settings, roles, and functions within Federal facilities, beyond those identified by agencies for high-risk settings, absent an approved exception from the agency head following consultation with the agency COVID-19 Coordination Team, including the agency Office of General Counsel, and the Safer Federal Workforce Task Force.

When COVID-19 Community Levels are MEDIUM or HIGH, asymptomatic individuals (without a known exposure to someone with COVID-19 within the past 10 days) who are enrolled in a serial screening testing program established for agency-identified high-risk settings, if any, should be tested at least twice weekly for any week during which they work onsite or interact in person with members of the public as part of their job duties in that agency-identified high-risk setting.¹⁰

Testing may be conducted at a Federal facility or offsite as determined by the agency. The test can be both self-administered and self-read by the employee if the agency has the employee certify as to when they took the test and that they received a negative result. See Task Force FAQs on [testing](#) for more information regarding serial screening testing.

Point-in-Time Screening Testing

Following consultation with the agency COVID-19 Coordination Team, including the agency Office of General Counsel, and the Task Force, agencies may establish COVID-19 point-in-time screening testing requirements for onsite contractor employees and visitors accessing agency-identified high-risk settings within Federal facilities, as well as for in-person attendees at agency-hosted meetings, events, or conferences taking place in high-risk settings within Federal facilities or high-risk non-Federal settings, when COVID-19 Community Levels are MEDIUM or HIGH in the county where the facilities with those high-risk settings are located.¹¹ When an agency has identified potential high-risk settings across its facilities, the agency should consult with the Task Force to confirm that those settings are high-risk and that conducting point-in-time screening testing in those facilities would be consistent with CDC and Task Force guidance. See Task Force FAQs on [testing](#) for more information regarding point-in-time screening testing.

Official Travel

*FAQs regarding **official travel** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

There are no Government-wide limits on official travel (i.e., travel conducted under an official travel authorization), regardless of an individual's vaccination status. Individuals should follow the travel policy of the agency sponsoring the official travel.

In approving official travel, the agency sponsoring the official travel should:

- Inform the traveling individual that CDC recommends that individuals make sure they are up to date with COVID-19 vaccines before travel;
- Recommend that the traveling individual consider being tested for current infection with a viral test as close to the time of departure as possible (no more than 3 days) before travel;
- Instruct the traveling individual to adhere strictly to CDC guidance for [domestic](#) and [international](#) travel before, during, and after official travel;
- Instruct the traveling individual to check their destination's COVID-19 Community Level before traveling, and to wear a high-quality mask or respirator (such as an N95) while on-duty and

¹⁰ To be consistent with Task Force Guidance, agencies should not implement serial screening testing when COVID-19 Community Levels are LOW.

¹¹ To be consistent with Task Force guidance, agencies should not establish point-in-time screening testing requirements for access to other facilities, settings, meetings, events, or conferences, absent an exception approved by the agency head following consultation with the agency COVID-19 Coordination Team, including the agency Office of General Counsel, and the Task Force. To be consistent with Task Force Guidance, agencies should not implement point-in-time screening testing when COVID-19 Community Levels are LOW.

around others indoors at their destination, if the COVID-19 Community Level in the county where their destination is located is HIGH;

- Instruct the traveling individual to make sure they understand and follow all travel restrictions put in place by State, Tribal, local, and territorial governments; and
- Advise the traveling individual to prepare to be flexible during their travel, as restrictions, policies, and circumstances may change during their travel.

Heads of agencies should issue specific travel guidance as needed to account for the specific requirements of their agency's mission.

Travel for Individuals with Known Exposure

For asymptomatic individuals who have had a known [exposure](#) to someone with COVID-19 within the past 10 days, agencies may approve official travel, consistent with the agency's travel policy. If the individual remains without COVID-19 [symptoms](#) before traveling, then pursuant to E.O. 13991 and consistent with CDC guidance, the agency must instruct the individual to, in addition to other standard pre-travel instructions related to COVID-19:

- Wear a high-quality [mask or respirator](#) (such as an N95) the entire time they are on-duty and around others indoors for the full duration of their travel that falls within the 10 full days after their last known exposure;
- Not travel on public transportation such as airplanes, buses, and trains if they will not be able to wear a high-quality mask or respirator (such as an N95) when around others indoors for the full duration of their travel within the 10 full days after their last known exposure; and
- Follow other aspects of [post-exposure protocols](#), including the requirement for individuals with a known exposure to be tested for COVID-19 after 5 full days following their last known exposure (ideally, on or after day 6)—note that this testing may need to occur while the individual is traveling, and that agencies do not need to require that employees wait for the results of this post-exposure diagnostic test to undertake official travel, including return travel.

If the individual develops COVID-19 symptoms after official travel has been approved, then pursuant to E.O. 13991 and consistent with CDC guidance, the agency must instruct the individual to not undertake further official travel, including under that previously approved travel authorization, and to instead follow agency protocols consistent with the Task Force guidance on travel for individuals with COVID-19 symptoms (see next section).

Travel for Individuals with COVID-19 Symptoms or a Positive COVID-19 Test

Pursuant to E.O. 13991 and consistent with CDC guidance, agencies must not approve official travel (i.e., travel conducted under an official travel authorization) for individuals who have COVID-19 symptoms and are waiting for an initial diagnostic viral test result, and agencies must not approve official travel for individuals who have tested positive for COVID-19 for at least 5 full days after their first day of symptoms, or after the date of the initial positive diagnostic viral test for asymptomatic individuals.

If an individual who tested positive for COVID-19 has returned to working onsite at an agency workplace or interacting with members of the public as part of their official responsibilities (once they are fever-free for 24 hours without the use of fever-reducing medication and their other symptoms are improving), then the agency may approve official travel for the individual. Pursuant to E.O. 13991 and

consistent with CDC guidance, the agency must instruct the individual to, in addition to other standard pre-travel instructions related to COVID-19:

- Wear a high-quality [mask or respirator](#) (such as an N95) the entire time they are on-duty and around others indoors for the full duration of their travel that falls within the period they are otherwise required to wear a high-quality mask or respirator after ending [isolation](#), consistent with Task Force guidance;
- Not travel on public transportation such as airplanes, buses, and trains if they will not be able to wear a high-quality mask or respirator (such as an N95) when around others indoors for the full duration of their travel that falls within the period they are otherwise required to wear a high-quality mask or respirator after ending [isolation](#), consistent with Task Force guidance; and
- Follow other aspects of [post-isolation protocols](#).

If after official travel has been approved, the individual's COVID-19 symptoms recur or worsen, then pursuant to E.O. 13991 and consistent with CDC guidance on [isolation](#), agencies must instruct the individual to not undertake further official travel, including under any previously approved travel authorization, and to again not enter a Federal facility or interact with members of the public as part of their official responsibilities, restarting at day 0 of [isolation](#) protocols.

Meetings, Events, and Conferences

*FAQs regarding **meetings, events, and conferences** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

For agency-hosted meetings, events, and conferences, there are no Government-wide restrictions, and agencies do not need to first seek approval of agency heads, regardless of the expected number of in-person participants or local COVID-19 Community Levels, unless otherwise required to do so by agency policy.

All in-person attendees at any meetings, conferences, or events hosted by Federal agencies must comply with relevant COVID-19 safety protocols, including as it relates to any mask-wearing when COVID-19 Community Levels are HIGH, pursuant to E.O. 13991 and consistent with CDC guidance.

Symptom Screening

*FAQs regarding **symptom screening** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

If a Federal employee, contractor employee, or visitor has fever or chills, or if they have other new or unexplained symptoms consistent with COVID-19 such as new or unexplained onset of cough, shortness of breath, or difficulty breathing, new or unexplained loss of taste or smell, or new or unexplained muscle aches, they should not enter a Federal workplace. If an individual suspects that they have COVID-19, such as because they have new or unexplained COVID-19 symptoms, but they do not yet have test results, they should not enter a Federal workplace and should [get tested](#) if they have not already done so.

To be consistent with Task Force guidance, agencies would need to require that all employees and contractor employees working onsite at an agency workplace and all visitors to Federal facilities complete symptom screening before entering a Federal facility. Agencies also would need to require that all employees complete symptom screening prior to interacting with members of the public in person as part of their official responsibilities. Symptom screening can be self-conducted and does not

need to be verified by agency personnel. In developing these tools, agencies may adapt the screening tool developed by [CDC](#).

Pursuant to E.O. 13991, agencies must require that any individual, regardless of vaccination status, who develops fever, chills, or other new or unexplained symptoms consistent with COVID-19, or who tests positive for COVID-19, while onsite during the workday immediately wear a high-quality mask or respirator (such as an N95) and promptly leave the workplace. Pursuant to E.O. 13991 and consistent with CDC guidance, the agency must require individuals who disclose that they have tested positive for COVID-19 to follow agency protocols on [isolation](#).

Post-Exposure Precautions

*FAQs regarding **post-exposure precautions** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

If an asymptomatic individual has a [known exposure to someone with COVID-19](#), CDC does not recommend quarantine at home, and so agencies must not prevent the individual from entering Federal facilities or interacting with members of the public in person as part of their official responsibilities due to quarantine protocols.

Pursuant to E.O. 13991 and consistent with CDC guidance on [post-exposure precautions](#), agencies must instruct individuals who are known to have been exposed to someone with COVID-19, regardless of their vaccination status, to:

1. Wear a high-quality [mask or respirator](#) (such as an N95) while indoors at an agency workplace or interacting indoors with members of the public in person as part of their official responsibilities as soon as possible after notification of exposure and continue to do so for 10 full days from the date they were last known to have been exposed;
2. Take [extra precautions](#), such as avoiding crowding and physically distancing from others, when they know they are around people who are [more likely to get very sick from COVID-19](#) while onsite at an agency workplace or interacting with members of the public in person as part of their official responsibilities, for 10 full days from the date they were last known to have been exposed; and
3. Watch for [COVID-19 symptoms](#) for 10 full days from the date they were last known to have been exposed.

For purposes of calculating the 10 full days, day 0 is the day of their last known exposure to someone with COVID-19, and day 1 is the first full day after their last known exposure.

As part of agency testing protocols, and pursuant to E.O. 13991 and consistent with CDC guidance, agencies must require that such employees and contractor employees who are known to have been exposed to COVID-19 and are onsite at an agency workplace or interacting with members of the public in person as part of their official responsibilities be tested for current infection with a [viral test](#) at least 5 full days after their last known exposure (ideally, on or after day 6). The test can be both self-administered and self-read by the employee if the agency has the employee certify as to when they took the test and that they received a negative result.

If the individual tests negative, then pursuant to E.O. 13991 and consistent with CDC guidance, the agency must instruct the individual to continue to follow the above precautions for 10 full days from the

date they were last known to have been exposed. If they test positive, or if they at any time develop COVID-19 symptoms, they must follow agency protocols on [isolation](#).

If the individual that has been known to be exposed to COVID-19 is not working onsite at an agency workplace or interacting with members of the public in person as part of their official responsibilities within 10 days of the known exposure, then the agency should not require them to be tested.

If the individual that has been known to be exposed to COVID-19 had tested positive for COVID-19 with a viral test within the previous 30 days and subsequently recovered and remains without COVID-19 symptoms, then they do not need to get tested after a known exposure. If the individual that had been known to be exposed to COVID-19 had tested positive for COVID-19 with a viral test within the previous 31-90 days and subsequently recovered and remains without COVID-19 symptoms, then they should be tested using a viral antigen test. (See also: [CDC guidance on specific testing recommendations for those that have had COVID-19 within the past 90 days.](#))

Isolation and Post-Isolation Precautions

*FAQs regarding **isolation and post-isolation precautions** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

Any individual with probable or confirmed COVID-19, regardless of their vaccination status, must not enter a Federal facility or interact with members of the public in person as part of their official responsibilities, consistent with CDC guidance on [isolation](#) and the workplace safety protocols set forth by their agency, and monitor their symptoms.

This includes people who have an initial positive diagnostic [viral test](#) for COVID-19, regardless of whether or not they have symptoms, and people with symptoms of COVID-19, including people who are awaiting test results or have not been tested.

To be consistent with Task Force guidance, agencies would need to allow individuals who tested positive for COVID-19 and never developed symptoms to return to working onsite at an agency workplace or interacting with members of the public as part of their official responsibilities after 5 full days following their positive COVID-19 test (day 0 being the day the individual was tested).

To be consistent with Task Force guidance, agencies would need to allow individuals who tested positive for COVID-19 and had symptoms to return to working onsite at an agency workplace or interacting with members of the public as part of their official responsibilities after 5 full days from the onset of symptoms (day 0 being the day of symptom onset), once they are fever-free for 24 hours without the use of fever-reducing medication and their other symptoms are improving. Note that loss of taste and smell may persist for weeks or months after recovery and need not delay the end of isolation.

If an individual had moderate illness (if they experienced shortness of breath or had difficulty breathing) or severe illness (they were hospitalized) due to COVID-19, or they have a weakened immune system, then to be consistent with Task Force guidance, agencies would need to advise the individual to delay returning to working onsite at an agency workplace or interacting with members of the public as part of their official responsibilities for a full 10 days. If an individual had severe illness or has a weakened immune system, they should consult their healthcare provider before ending isolation. If an individual is unsure if their symptoms are moderate or severe or if they have a weakened immune system, agencies should advise the individual to talk to a healthcare provider for further guidance.

To be consistent with Task Force guidance, agencies should not use a test-based approach to determine when, after having tested positive for COVID-19 and isolated, an individual can return to working onsite at an agency workplace or interacting with members of the public as part of their official duties, absent an exception approved by the agency head following consultation with the agency COVID-19 Coordination team, including the agency Office of General Counsel, and the Task Force.

Once an individual has returned to working onsite at an agency workplace or interacting with members of the public as part of their official responsibilities after having tested positive for COVID-19 and isolated consistent with [CDC guidance on isolation](#), then pursuant to E.O. 13991 and consistent with CDC guidance, the agency must instruct the individual to continue to take precautions consistent with CDC guidance for at least 10 full days after their first day of symptoms, or after the date of a positive viral test for asymptomatic individuals, including wearing a high-quality [mask or respirator](#) (such as an N95) when around others, avoiding eating and drinking around others, avoiding environments such as dining facilities, gyms, or other places where they may need to be unmasked around others, and avoiding being around people who they know are at [high risk for severe disease from COVID-19](#).

As it relates to mask-wearing after returning from isolation, agencies may also inform such individuals that they can opt to take two viral antigen tests authorized by the FDA to detect current COVID-19 infection, starting on day 6. With two sequential negative tests 48 hours apart, the individual may remove their mask sooner than day 10. If either of their antigen test results are positive, the individual should continue taking antigen tests at least 48 hours apart until they have two sequential negative results. This may mean that the individual would continue wearing a mask and testing beyond day 10.

If at any point their COVID-19 symptoms recur or worsen, agencies must instruct the individual to again not enter a Federal facility or interact with members of the public as part of their official responsibilities, restarting at day 0, consistent with E.O. 13991 and CDC recommendations on [isolation](#) and the protocols set forth by their agency.

Confidentiality and Privacy

All medical information collected from individuals, including vaccination information, test results, and any other information obtained as a result of testing and symptom monitoring, will be treated in accordance with applicable laws and policies on confidentiality and privacy, and will be accessible only to those with a need to know. Agencies should consult their Senior Agency Officials for Privacy on matters related to the collection and handling of personally identifiable information and identify a point of contact for all questions relating to personal medical information.

Workplace Operations

*FAQs regarding **building operations** can be found on SaferFederalWorkforce.gov [here](#).*

*FAQs regarding **facilities** can be found on SaferFederalWorkforce.gov [here](#).*

*FAQs regarding **signage** can be found on SaferFederalWorkforce.gov [here](#).*

Improving Ventilation and Air Filtration

To be consistent with Task Force guidance, agencies would need to make and maintain improvements to indoor ventilation and air filtration throughout Federal facilities to the maximum extent feasible, regardless of COVID-19 Community Levels. In consultation with occupational safety and facilities experts as appropriate, agencies should consider making use of portable air cleaners with high-efficiency

particulate air (HEPA) filters in indoor common areas and meeting rooms, particularly where ventilation or air filtration is otherwise challenging to improve, where crowding cannot be avoided, or in high-risk settings. Agencies may reference the Environmental Protection Agency's [Clean Air in Buildings Challenge](#) for potential steps to improve indoor air quality, as well as CDC guidance on [ventilation in buildings](#).

Facilitating Physical Distancing and Avoiding Crowding

To be consistent with Task Force guidance, when COVID-19 Community Levels are MEDIUM or HIGH, agencies would need to post signage encouraging individuals, regardless of vaccination status, to consider avoiding crowding and physically distancing themselves from others in indoor common areas, meeting rooms, and high-risk settings in Federal facilities. Pursuant to E.O. 13991, CDC guidance for physical distancing in specific settings, including healthcare and high-risk congregate settings, must be followed, as applicable.

When COVID-19 Community Levels are MEDIUM or HIGH, agencies can consider establishing occupancy limits for indoor common areas and meeting rooms in Federal facilities, and in high-risk settings within Federal facilities, where necessary, including where ventilation and air filtration is challenging to improve or crowding cannot otherwise be avoided.

Telework and Remote Work

Agencies should utilize telework and remote work consistent with the principles set forth in OMB Memorandum M-21-25, OPM [guidance](#) on telework and remote work, agency post-reentry work environments, and agency telework and remote work policies.

COLLECTIVE BARGAINING OBLIGATIONS

*Frequently asked questions regarding **labor relations** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

Consistent with President Biden's policy to support collective bargaining, agencies are reminded to satisfy any applicable collective bargaining obligations under 5 U.S.C. Chapter 71. Agencies are strongly encouraged to communicate regularly with employee representatives on COVID-19 workplace safety matters. Agencies should engage with employee unions at their earliest opportunity as they adjust agency COVID-19 workplace safety plans, protocols, and policies, and otherwise satisfy any applicable collective bargaining obligations under the law, if any, at the earliest opportunity, including on a post-implementation basis, where appropriate.

Agencies should also review existing collective bargaining agreements (CBAs) to assess whether these updated COVID-19 workplace safety protocols conflict with existing CBA provisions. To the extent that conflicting CBAs provisions exist, agencies are strongly encouraged to bring the CBA into compliance with these updated COVID-19 workplace safety protocols at the earliest opportunity permitted under the law.

EXCEPTIONS

*Frequently asked questions regarding **exceptions** can be found on [SaferFederalWorkforce.gov](#) [here](#).*

E.O. 13991 directs agencies to, as appropriate and consistent with applicable law, require compliance with CDC guidance with respect to wearing masks, maintaining physical distance, and other public

health measures by: on-duty or onsite Federal employees; onsite Federal contractors; and all persons in Federal buildings or on Federal lands. E.O. 13991 also provides that heads of agencies may make categorical or case-by-case exceptions to the extent that doing so is necessary or required by law, and consistent with applicable law. Agencies should consult with the Task Force prior to an agency head approving any such exceptions.

If agencies have implementation challenges or operational circumstances that may require other or additional prevention measures beyond those set forth in Task Force guidance, or otherwise require the agency to adopt COVID-19 workplace safety protocols that differ from Task Force guidance unless for reasons of following setting-specific CDC guidance, agencies should consult the Task Force regarding exceptions, prior to implementing any such other or additional measures or protocols.

Pursuant to E.O. 13991, Federal agencies must follow CDC guidance related to certain settings where different or additional layers of prevention are recommended by CDC, including, for example, [travel and the indoor transportation corridor](#), [schools](#), [health care settings](#), [congregate settings](#), and [correctional facilities](#). Where there is a conflict with more general Task Force or CDC guidance, agencies must follow the setting-specific CDC guidance.

In addition, to be consistent with Task Force guidance, where a locality has imposed additional pandemic-related requirements more protective than those set forth in Task Force guidance, agencies would need to follow those additional local requirements in Federal buildings, in Federally controlled worksites, on Government-operated transportation conveyances, and on Federal land in that locality. For example, if a locality has imposed mask-wearing requirements for indoor facilities, agencies would need to apply those requirements in Federal facilities, even if not otherwise required under agency mask-wearing protocols.